

12-0351-00
 BROWN & BROWN INSURANCE SERVICES INC
 PO BOX 2412
 DAYTONA BEACH FL 32115

Auto-Owners **INSURANCE**

LIFE • HOME • CAR • BUSINESS

PO BOX 30660 • LANSING, MI 48909-8160

AUTO-OWNERS INSURANCE COMPANY

Agency phone: (386) 252-9601

08-14-2025

CLEMENTS PEST CONTROL SERVICES LLC
 4036 43RD AVE
 VERO BEACH FL 32960-1805

This is not a bill. The premium can be paid before a bill is sent using any of the following methods:

Pay Online
www.auto-owners.com
 Pay My Bill

Pay by Mail
 AUTO-OWNERS INSURANCE
 PO BOX 740312
 CINCINNATI, OH 45274-0312

Pay by Phone
 1.800.288.8740

RE: Policy 53-543-687-00

Billing Account 019176406

Thank you for selecting Auto-Owners Insurance Group to service your insurance needs!

Auto-Owners and its affiliate companies offer a full complement of policies, each of which has its own eligibility requirements, coverages, and rates. Please take this opportunity to review your insurance needs with your Auto-Owners agent **386.252.9601**, and discuss which company and program might be appropriate for you. After talking with your agent, if there are any unanswered questions, please contact us at 517.323.1200.

Auto-Owners Insurance Company was formed in 1916. Our A+ (Superior) rating by AM Best signifies that we have the financial strength to provide the insurance protection you need. The Auto-Owners Insurance Group is comprised of five property and casualty companies and a life insurance company.

Serving Our Policyholders and Agents Since 1916

NOTICE OF PRIVACY PRACTICES

What We Do To Protect Your Privacy

At Auto-Owners Insurance Group*, we value your business and we want to retain your trust. In the course of providing products and services, we may obtain nonpublic personal information about you. We assure you that such information is used only for the purpose of providing our products and services to you.

Protecting Confidentiality

Our agents and Company associates may have access to nonpublic personal information only for the purpose of providing our products or services to you. We maintain physical, electronic and procedural safeguards against unauthorized use of your nonpublic personal information.

Information We Obtain

To assist in underwriting and servicing your policy, we may obtain nonpublic personal information about you. For example, we routinely obtain information through applications, forms related to our products or services, from visiting www.auto-owners.com, and your transactions with us. We may obtain such information from our affiliates, independent insurance agents, governmental agencies, third parties, or consumer reporting agencies.

The type of information that we collect depends on the product or service requested, but may include your name, address, contact information, social security number, credit history, claims history, information to properly investigate and resolve any claims, or billing information. We may obtain your medical history with your permission. The nature and extent of the information we obtain varies based on the nature of the products and services you receive.

The Internet and Your Information

If you would like to learn about how we gather and protect your information over the Internet, please see our online privacy statement at www.auto-owners.com/privacy.

Generally, Auto-Owners may use cookies, analytics, and other technologies to help us provide users with better service and a more customized web experience. Our business partners may use tracking services, analytics, and other technologies to monitor visits to www.auto-owners.com. The website may use web beacons in addition to cookies. You may choose to not accept cookies by changing the settings in your web browser.

Information obtained on our websites may include IP address, browser and platform types, domain names, access times, referral data, and your activity while using our site; who should use our web site; the security of information over the Internet; and links and co-branded sites.

Limited Disclosure

Auto-Owners Insurance Group companies do not disclose any nonpublic personal information about their customers or former customers except as permitted by law. We do not sell your personal information to anyone. We do not offer an opportunity for you to prevent or "opt out of" information sharing since we only share personal information with others as allowed by law.

When sharing information with third parties to help us conduct our business, we require them to protect your personal information. We do not permit them to use or share your personal information for any purpose other than the work they are doing on our behalf or as required by law.

The types of information disclosed may include personal information we collect as necessary to service your policy or account, investigate and pay claims, comply with state and federal regulatory requests or demands, and process other transactions that you request. Third parties that receive disclosures may include your independent agent, regulators, reinsurance companies, fraud prevention agencies, or insurance adjusters.

How Long We Retain Your Information

We generally retain your information as long as reasonably necessary to provide you services or to comply with applicable law and in accordance with our document retention policy. We may retain copies of information about you and any transactions or services you have used for a period of time that is consistent with applicable law, applicable statute of limitations or as we believe is reasonably necessary to comply with applicable law, regulation, legal process or governmental request, to detect or prevent fraud, to collect fees owed, to resolve disputes, to address problems with our services, to assist with investigations, to enforce other applicable agreements or policies or to take any other actions consistent with applicable law.

In some circumstances we may anonymize your personal information (so that it can no longer be associated with you) for research or statistical purposes, in which case we may use this information indefinitely without further notice to you. This allows the specific information collected (name, email, address, phone number, etc.) to become anonymous, but allows Auto-Owners to keep the transaction or engagement data.

Changes to the Privacy Policy

We will provide a notice of our privacy policy as required by law. This policy may change from time to time, but you can always review our current policy by visiting our website at www.auto-owners.com/privacy or by contacting us.

Contact Us

Auto-Owners Insurance Company
Phone: 844-359-4595 (toll free)
Email: privacyrequest@aoins.com

*Auto-Owners Insurance Group includes, Auto-Owners Insurance Company, Auto-Owners Life Insurance Company, Home-Owners Insurance Company, Owners Insurance Company, Property-Owners Insurance Company and Southern-Owners Insurance Company.

AVAILABILITY OF RISK MANAGEMENT PLAN - FLORIDA

The Florida Tort Reform and Insurance Act of 1986 requires insurance companies to make available to commercial casualty and commercial property policyholders guidelines for risk management plans.

Risk management guidelines include the following:

A. Safety measures, including, as applicable, the following areas:

1. Pollution and environmental hazards;
2. Disease hazards;
3. Accidental occurrences;
4. Fire hazards and fire prevention and detection;
5. Liability for acts from the course of business;
6. Slip and fall hazards;
7. Product injury; and
8. Hazards unique to a particular class or category of insureds.

B. Training to insureds in safety management techniques.

C. Safety management counseling services.

Risk Management Plan guidelines are available at your request. If you desire this service, please contact your agent or our Loss Control Services department by e-mail at losscontrolsupport@aoinc.com or by phone (855) 586-5388.

NOTICE TO POLICYHOLDER

FLORIDA UNINSURED MOTORIST COVERAGE OPTIONS AVAILABLE

Dear Policyholder:

Florida law allows you to make certain choices regarding Uninsured Motorist Coverage provided under your policy. The Uninsured Motorist Coverage provided by your current policy is described in your policy's Declarations page. Your previous selection or rejection of Uninsured Motorist Coverage as reflected on your Declarations page will continue to apply to your auto liability insurance policy and future renewals or replacements of such policy which are issued at the same Bodily Injury Liability limits unless you request a change to your previous selection or rejection in writing. Your selection or rejection shall be conclusively presumed to be an informed, knowing acceptance of such limitations on behalf of all insureds.

This document generally describes all of the coverage options available to you. No coverage is provided by this document. Please review your policy and Declarations page for information regarding your specific coverages.

Uninsured Motorist Coverage Options

Uninsured Motorist Coverage provides coverage for insured persons who are legally entitled to recover damages from owners or operators of uninsured motor vehicles because of bodily injury, sickness or disease, including death which results from any of these. Such benefits may include payments for certain medical expenses, lost wages, and pain and suffering, subject to limitations and conditions contained in the policy. Uninsured Motorist Coverage also extends coverage for damages caused by motor vehicle owners or operators who have Bodily Injury Liability limits lower than the amount of your damages.

You may select Uninsured Motorist Coverage in an amount equal to your limits for Bodily Injury Liability Coverage. You may also select Uninsured Motorist limits lower than your Bodily Injury Liability limits, or you may entirely reject Uninsured Motorist Coverage.

If any named insured is designated as an individual, you have the option to purchase non-stacked Uninsured Motorist Coverage at a reduced rate. If any named insured is designated as other than an individual, your policy will include non-stacked Uninsured Motorist Coverage, unless you reject Uninsured Motorist Coverage entirely. Under this coverage, if injury occurs in a motor vehicle owned or leased by you or a family member who resides with you, this policy will apply only to the extent of coverage (if any) which applies to that vehicle in this policy. If injury occurs while you are occupying a motor vehicle which is not owned by you or a family member who resides with you, or while you are a pedestrian, you are entitled to select the highest limits of Uninsured Motorist Coverage available on any one motor vehicle covered by a policy for which you are a named insured, insured family member, or insured resident of the named insured's household. If the named insured is an individual and you do not elect to purchase the non-stacked coverage, your policy limits for each motor vehicle are added together (stacked) for all covered injuries. Thus, your Uninsured Motorist Coverage limits would automatically change during the policy term if you increase or decrease the number of motor vehicles covered under the policy.

If you have questions regarding your Uninsured Motorist Coverage that is reflected on your policy's Declarations page or wish to select a different option, you must contact your agent and complete the Florida Option to Reject or Modify Uninsured Motorist Coverage form 58021 (1-17).

POLICYHOLDER NOTICE USE OF MEDICAL FEE SCHEDULE FOR PERSONAL INJURY PROTECTION CLAIMS

We will limit reimbursement of medical expenses under Personal Injury Protection coverage to 80 percent of the following schedule of maximum charges specified in the Florida Motor Vehicle No-Fault Law, section 627.736, Florida Statutes:

- a. For emergency transport and treatment by providers licensed under chapter 401, Florida Statutes, 200 percent of Medicare.
- b. For emergency services and care provided by a hospital licensed under chapter 395, Florida Statutes, 75 percent of the hospital's usual and customary charges.
- c. For emergency services and care as defined by s. 395.002, Florida Statutes, provided in a facility licensed under chapter 395, Florida Statutes, rendered by a physician or dentist, and related hospital inpatient services rendered by a physician or dentist, the usual and customary charges in the community.
- d. For hospital inpatient services, other than emergency services and care, 200 percent of the Medicare Part A prospective payment applicable to the specific hospital providing the inpatient services.
- e. For hospital outpatient services, other than emergency services and care, 200 percent of the Medicare Part A Ambulatory Payment Classification for the specific hospital providing the outpatient services.
- f. For all other medical services, supplies, and care, 200 percent of the allowable amount under:
 1. The participating physicians fee schedule of Medicare Part B, except as provided in 2. and 3. below.
 2. Medicare Part B, in the case of services, supplies, and care provided by ambulatory surgical centers and clinical laboratories.
 3. The Durable Medical Equipment Prosthetics/Orthotics and Supplies fee schedule of Medicare Part B, in the case of durable medical equipment.

However, if such services, supplies, or care is not reimbursable under Medicare Part B, as provided in f. above, we will limit reimbursement to 80 percent of the maximum reimbursable allowance under workers' compensation, as determined under s. 440.13, Florida Statutes, and rules adopted thereunder which are in effect at the time such services, supplies, or care is provided. Services, supplies, or care that is not reimbursable under Medicare or workers' compensation will not be reimbursed by us.

For purposes of the above, the applicable fee schedule or payment limitation under Medicare is the fee schedule or payment limitation in effect on March 1 of the service year in which the services, supplies, or care is rendered and for the area in which such services, supplies, or care is rendered, and the applicable fee schedule or payment limitation applies to services, supplies, or care rendered during that service year notwithstanding any subsequent change made to the fee schedule or payment limitation, except that it will not be less than the allowable amount under the applicable schedule of Medicare Part B for 2007 for medical services, supplies, and care subject to Medicare Part B. The term "service year" means the period from March 1 through the end of February of the following year.

If you have elected Extended Personal Injury Protection, as shown in the Declarations, we will limit reimbursement for medical benefits to 100 percent of the schedule of maximum charges set forth by the above described fee schedule for the named insured and resident family members and 80 percent of the schedule of maximum charges set forth by the above described fee schedule for persons other than the named insured or resident family members.

We shall use the Medicare coding policies and payment methodologies of the federal Centers for Medicare and Medicaid Services, including applicable modifiers, to determine the appropriate amount of reimbursement for medical services, supplies or care.

Your policy contains the terms and conditions of this coverage. Should you have any questions about this or other issues related to your policy, please contact your agent for assistance.

OPTION TO MODIFY PERSONAL INJURY PROTECTION BENEFITS

For Personal Injury Protection insurance, the named insured may elect a deductible and to exclude coverage for loss of gross income and loss of earning capacity ("lost wages"). These elections apply to the named insured alone, or to the named insured and all dependent resident family members. A premium reduction will result from these elections. The named insured is hereby advised not to elect the lost wage exclusion if the named insured or dependent resident family members are employed, since lost wages will not be payable in the event of an accident.

If this is an existing or renewal policy, the option you previously selected for Personal Injury Protection will continue to apply, unless you make a different selection below.

Please review carefully and indicate your selection(s) under one of the following options, if desired:

Option 1:

Standard Personal Injury Protection Benefits

Total Aggregate Limit for all Personal

Injury Protection Benefits, except Death Benefits

Medical Expenses

Wage Loss

Replacement Services Expenses

Death Benefits

Limit Per Person

\$10,000 (medical expenses limited to \$2,500 non-emergency)

80% of medical expenses subject to the Florida Motor Vehicle No-Fault Statute's fee schedule and subject to the total aggregate limit for Personal Injury Protection Benefits

60% of wage loss subject to the total aggregate limit subject to the total aggregate limit

\$5,000

☐ Select deductible of ☐ No deductible ☐ \$250 ☐ \$500 ☐ \$1,000 to apply to Personal Injury Protection Benefits for:

☐ Named Insured Only

☐ Named Insured and All Dependent Resident Family Members

☐ Exclude loss of gross income and loss of earning capacity ("lost wages")

☐ Named Insured Only

☐ Named Insured and All Dependent Resident Family Members

Option 2:

Extended Personal Injury Protection Benefits

Total Aggregate Limit for all Personal

Injury Protection Benefits, except Death Benefits

Medical Expenses

Wage Loss

Replacement Services Expenses

Death Benefits

Limit Per Person

\$10,000 (medical expenses limited to \$2,500 non-emergency)

100% of medical expenses subject to the Florida Motor Vehicle No-Fault Statute's fee schedule and subject to the total aggregate limit for Personal Injury Protection Benefits

80% of wage loss subject to the total aggregate limit subject to the total aggregate limit

\$5,000

☐ Select Extended Personal Injury Protection Coverage. **No deductible options are available.**

☐ Exclude loss of gross income and loss of earning capacity ("loss wages"). **Excluded "loss wages" must apply to named insured and all dependent resident family members.**

Signature

Date

Policy Number: 53-543-687-00

Agency: 12-0351-00 BROWN & BROWN INSURANCE SERVICES INC

59243 (6-00)

Florida
POLICYHOLDER INFORMATION AND ASSISTANCE

We are here to serve you and as our policyholder your satisfaction is very important to us. Should you have any questions or a complaint regarding your policy that cannot be resolved by your agent, you may contact our Lakeland Regional Office for information and assistance by calling 863-687-4505.

Auto-Owners Insurance Company
Owners Insurance Company
Southern-Owners Insurance Company

59243 (6-00)

Page 1 of 1

69368 (2-15)

***** IMPORTANT NOTICE *****
EQUIPMENT AND CUSTOM FURNISHINGS

Dear Policyholder:

One or more autos shown in the enclosed Declarations have attached equipment or custom furnishings. Please review your Declarations for autos that have an increased value due to attached equipment or custom furnishings, including truck bodies added to an incomplete chassis. If there is any change in value or there is any new attached equipment or custom furnishings not currently accounted for on the policy, please advise your agent.

This notice is for informational purposes only. Your policy contains the specific terms and conditions of coverage.

If you have any questions regarding this policy or this notice, please contact your Auto-Owners agency.

69368 (2-15)

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NOTICE TO POLICYHOLDER STATED AMOUNT

Dear Policyholder:

One or more autos shown in the enclosed Declarations are insured on a Stated Amount basis. In accordance with the provisions of this policy, losses will be settled on the actual cash value of the auto at the time of loss, subject to a maximum payment of the Stated Amount as indicated by "SA" in the Declarations. Requesting coverage on a Stated Amount basis does not guarantee payment in that amount should a claim occur. Please refer to Section III, C.1. of the Commercial Auto Policy for coverage details.

Please review your Declarations for those autos you have insured on a Stated Amount basis and advise your agency of any change in value.

This notice is for informational purposes. Your policy contains the specific terms and conditions of coverage.

If you have any questions regarding this policy or this notice, please contact your agency.

INSURANCE COMPANY
6101 ANACAPRI BLVD., LANSING, MI 48917-3999

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114 (386) 252-9601

ITEM ONE

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC
SEE FORM 59270

ADDRESS 4036 43RD AVE
VERO BEACH FL 32960-1805

**COMMERCIAL AUTO POLICY DECLARATIONS
PREFERRED PROGRAM**

Renewal Effective 09-29-2025

POLICY NUMBER 53-543-687-00

Company Use 72-02-FL-2109

Company
Bill

POLICY TERM

12:01 a.m. to 12:01 a.m.
09-29-2025 to 09-29-2026

Entity: Limited Liability Company

IN RETURN FOR THE PAYMENT OF THE PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE AGREE WITH YOU TO PROVIDE THE INSURANCE AS STATED IN THIS POLICY.

ITEM TWO - SCHEDULE OF COVERED AUTOS AND COVERAGES

This policy provides only those coverages where a charge is shown in the premium column below. Each of these coverages will apply only to those **autos** shown as covered **autos**. **Autos** are shown as covered **autos** for a particular coverage by the entry of one or more of the symbols from the COVERED AUTOS section of the Commercial Auto Policy next to the name of the coverage.

COVERAGES		COVERED AUTOS SYMBOLS	LIMIT OF INSURANCE FOR ANY ONE ACCIDENT OR LOSS	PREMIUM
Combined Liability		1	\$1Million each accident	\$132,435.35
Uninsured Motorist Coverage		2, 8, 9	\$100,000 each person/ \$100,000 each accident (Non-stacked Uninsured Motorist Coverage selected.)	\$15,956.33
Personal Injury Protection		5	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	\$1,476.64
Medical Payments		7	\$5,000 each person	\$363.80
Physical Damage	Comprehensive	7, 8	\$250 deductible applies for each covered auto unless a deductible appears in ITEM THREE.	\$4,632.55
	Collision	7, 8	\$500 deductible applies for each covered auto unless a deductible appears in ITEM THREE.	\$9,926.74
	Road Trouble Service			No Coverage
	Additional Expense			No Coverage
Premium for Endorsements				\$773.37
ESTIMATED TOTAL PREMIUM*				\$165,564.78

* This policy may be subject to final audit.

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

ITEM TWO (Continued)

Endorsements That Apply To All Items: 59495 (08-11) 58000 (01-15) 58001 (01-15) 58200 (01-15) 58524 (01-15) 58550 (01-17)
58555 (01-16) 58558 (03-16) 58706 (07-20) 58800 (07-23) 59325 (12-19) 58097 (05-21) 58583 (01-15) 58504 (01-15)
58540 (12-19)

QUICK REFERENCE FOR COVERED AUTO DESIGNATION SYMBOLS

Refer to the Commercial Auto Policy 58001 Section I for a complete description of COVERED AUTOS and policy provisions that may apply.

1 = Any Auto

2 = Owned Autos Only

3 = Owned Private Passenger Autos Only

4 = Owned Autos Other Than Private Passenger Autos
Only

5 = Owned Autos Subject to No-fault

6 = Owned Autos Subject To A Compulsory Uninsured
Motorists Law

7 = Scheduled Autos Only

8 = Hired Autos Only

9 = Non-owned Autos Only

19 = Mobile Equipment Subject To Compulsory Or
Financial Responsibility Or Other Motor Vehicle
Insurance Law Only

COMMERCIAL AUTO POLICY DECLARATIONS
PREFERRED PROGRAM

Renewal Effective 09-29-2025
POLICY NUMBER 53-543-687-00
Company Use 72-02-FL-2109

Company Bill	POLICY TERM	
	12:01 a.m.	12:01 a.m.
	09-29-2025	09-29-2026

In consideration of payment of the premium shown below, this policy is renewed. Please attach this Declarations and attachments to your policy. If you have any questions, please consult with your agent.

ITEM THREE - SCHEDULE OF COVERED AUTOS, ADDITIONAL COVERAGES AND ENDORSEMENTS

	TERRITORY	CLASS
Hired Autos Liability - Non-Motor Carrier Operations	051 Indian River County, FL	SPL
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$83.64
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	29.44
TOTAL		\$113.08

Additional Endorsements For This Item: 58308 (07-23)
ITEM DETAILS: Estimated cost of hire - liability \$ If Any (Subject to audit)
Non-stacked Uninsured Motorist Coverage selected.
Rate Effective Date 06-08-2025
150

Hired Autos Physical Damage	051 Indian River County, FL	SPL
COVERAGES	LIMITS	PREMIUM
Comprehensive	ACV not to exceed \$ 200,000 \$ 100 deductible each covered auto	\$13.92
Collision	ACV not to exceed \$ 200,000 \$ 250 deductible each covered auto	56.39
TOTAL		\$70.31

ITEM DETAILS: Estimated cost of hire - physical damage \$ If Any (Subject to audit)
Rate Effective Date 06-08-2025
150

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

TERRITORY	CLASS
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Drive Other Car Coverage - Broadened Coverage for Named Individuals

Name of Individual: TIM SLADE

COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$78.15
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	45.49
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	5.22
Medical Payments	\$ 5,000 each person	2.00
Comprehensive	ACV - \$ 1,000 deductible	6.09
Collision	ACV - \$ 1,000 deductible	9.66
TOTAL		\$146.61

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23) 58650 (01-17)

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150

Drive Other Car Coverage - Broadened Coverage for Named Individuals

Name of Individual: DEBBIE SLADE

COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$76.74
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	45.49
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	5.22
Medical Payments	\$ 5,000 each person	2.00
Comprehensive	ACV - \$ 1,000 deductible	6.19
Collision	ACV - \$ 1,000 deductible	9.59
TOTAL		\$145.23

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23) 58650 (01-17)

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

TERRITORY	CLASS
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Drive Other Car Coverage - Broadened Coverage for Named Individuals

Name of Individual: CHRISTOPHER SLADE

COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$85.04
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	45.49
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	7.56
Medical Payments	\$ 5,000 each person	2.00
Comprehensive	ACV - \$ 1,000 deductible	7.67
Collision	ACV - \$ 1,000 deductible	10.79
TOTAL		\$158.55

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23) 58650 (01-17)

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150

Drive Other Car Coverage - Broadened Coverage for Named Individuals

Name of Individual: JADE SLADE

COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$85.04
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	45.49
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	7.56
Medical Payments	\$ 5,000 each person	2.00
Comprehensive	ACV - \$ 1,000 deductible	7.84
Collision	ACV - \$ 1,000 deductible	11.43
TOTAL		\$159.36

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23) 58650 (01-17)

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150

Non-Owned Autos Liability

051 SPL
Indian River County, FL

COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$94.22
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	76.93
TOTAL		\$171.15

Additional Endorsements For This Item: 58308 (07-23)

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

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AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

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Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
1. 2014 FORD F350 VIN: 1FTBF3A62EEB22459		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,719.72	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	324.88	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	29.62	
Medical Payments	\$ 5,000 each person	7.45	
Comprehensive	ACV not to exceed \$ 30,815 (SA) - \$ 1,000 deductible	102.48	
Collision	ACV not to exceed \$ 30,815 (SA) - \$ 1,000 deductible	217.31	
TOTAL		\$4,401.46	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0034850

2. 2013 FORD F550 VIN: 1FDUF5GT8DEA78561		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,283.39	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	158.77	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	11.23	
Medical Payments	\$ 5,000 each person	2.82	
Comprehensive	ACV not to exceed \$ 35,310 (SA) - \$ 1,000 deductible	117.41	
Collision	ACV not to exceed \$ 35,310 (SA) - \$ 1,000 deductible	206.05	
TOTAL		\$3,779.67	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Cab Chassis Truck 16,001 - 19,500 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0034825

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
3. 2012 FORD F250 VIN: 1FTBF2B64CEB37230		057 Martin County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$4,869.85	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	295.35	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	39.00	
Medical Payments	\$ 5,000 each person	7.10	
Comprehensive	ACV not to exceed \$ 31,810 (SA) - \$ 1,000 deductible	106.49	
Collision	ACV not to exceed \$ 31,810 (SA) - \$ 1,000 deductible	231.96	
TOTAL		\$5,549.75	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0035195

4. 2017 GMC SIERRA VIN: 1GTR1LEH4HZ224366		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,855.45	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	31.94	
Medical Payments	\$ 5,000 each person	8.03	
Comprehensive	ACV not to exceed \$ 32,230 (SA) - \$ 1,000 deductible	112.82	
Collision	ACV not to exceed \$ 32,230 (SA) - \$ 1,000 deductible	230.06	
TOTAL		\$4,595.84	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0032130

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
5. 2014 NISS FRONTIER VIN: 1N6AD0CU7EN760103		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$2,937.41	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	505.06	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	45.31	
Medical Payments	\$ 5,000 each person	11.39	
Comprehensive	ACV not to exceed \$ 23,920 (SA) - \$ 1,000 deductible	85.97	
Collision	ACV not to exceed \$ 23,920 (SA) - \$ 1,000 deductible	222.79	
TOTAL		\$3,807.93	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0024130

6. 2016 FORD F150 VIN: 1FTMF1CP1GKD36947		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,811.44	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	31.12	
Medical Payments	\$ 5,000 each person	7.83	
Comprehensive	ACV not to exceed \$ 27,110 (SA) - \$ 1,000 deductible	88.07	
Collision	ACV not to exceed \$ 27,110 (SA) - \$ 1,000 deductible	194.05	
TOTAL		\$4,490.05	

Interested Parties:

Lienholder (Loss Payee): NATIONAL BANK OF COMMERCE, PO BOX 160, FLORENCE, AL 35631-0160

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0031615

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
7. 2012 CHEV COLORADO VIN: 1GCCSBFE4C8168350		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$2,811.00	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	459.15	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	43.19	
Medical Payments	\$ 5,000 each person	10.86	
Comprehensive	ACV not to exceed \$ 18,395 (SA) - \$ 1,000 deductible	74.92	
Collision	ACV not to exceed \$ 18,395 (SA) - \$ 1,000 deductible	206.69	
TOTAL		\$3,605.81	

Interested Parties:

Lienholder (Loss Payee): NATIONAL BANK OF COMMERCE, PO BOX 160, FLORENCE, AL 35631-0160

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0019195

8. 2006 TOYT TACOMA VIN: 3TMKU72N36M005083		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$2,213.86	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	344.36	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	37.25	
Medical Payments	\$ 5,000 each person	9.37	
Comprehensive	ACV not to exceed \$ 22,540 (SA) - \$ 1,000 deductible	85.97	
Collision	ACV not to exceed \$ 22,540 (SA) - \$ 1,000 deductible	222.79	
TOTAL		\$2,913.60	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0022040

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
9. 2017 TOYT TACOMA VIN: 5TFRX5GN3HX098476	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,044.74
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	48.86
Medical Payments	\$ 5,000 each person	12.29
Comprehensive	ACV not to exceed \$ 24,120 (SA) - \$ 1,000 deductible	92.76
Collision	ACV not to exceed \$ 24,120 (SA) - \$ 1,000 deductible	227.19
	TOTAL	\$3,981.67

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0026205

10. 2019 CHEV 4500 VIN: 54DCDW1B2KS808762	057 Martin County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$4,553.87
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	317.73
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	25.08
Medical Payments	\$ 5,000 each person	4.56
Comprehensive	ACV - \$ 1,000 deductible	104.00
Collision	ACV - \$ 1,000 deductible	255.20
	TOTAL	\$5,260.44

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Straight Truck 14,001 - 15,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0044245

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
11. 2019 NISS FRONTIER VIN: 1N6BD0CT2KN734855	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,126.40
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	51.31
Medical Payments	\$ 5,000 each person	12.90
Comprehensive	ACV - \$ 1,000 deductible	90.81
Collision	ACV - \$ 1,000 deductible	227.03
	TOTAL	\$4,064.28

Interested Parties:

Lienholder (Loss Payee): SOUTHSTATE BANK, PO BOX 2590, COPPELL, TX 75019-8590

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0023860

12. 2019 FORD F150 VIN: 1FTMF1C52KKD92466	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,959.04
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	33.53
Medical Payments	\$ 5,000 each person	8.43
Comprehensive	ACV - \$ 1,000 deductible	147.22
Collision	ACV - \$ 1,000 deductible	271.84
	TOTAL	\$4,777.60

Interested Parties:

Lienholder (Loss Payee): SOUTHSTATE BANK, PO BOX 2590, COPPELL, TX 75019-8590

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0034160

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
13. 2019 FORD F150 VIN: 1FTMF1C50KKD92319		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,959.04	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	33.53	
Medical Payments	\$ 5,000 each person	8.43	
Comprehensive	ACV - \$ 1,000 deductible	147.22	
Collision	ACV - \$ 1,000 deductible	271.84	
TOTAL		\$4,777.60	

Interested Parties:

Lienholder (Loss Payee): SOUTHSTATE BANK, PO BOX 2590, COPPELL, TX 75019-8590

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0034160

14. 2021 NISS FRONTIER VIN: 1N6ED0EA4MN707636		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,124.94	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	53.84	
Medical Payments	\$ 5,000 each person	13.54	
Comprehensive	ACV not to exceed \$ 36,001 (SA) - \$ 1,000 deductible	117.15	
Collision	ACV not to exceed \$ 36,001 (SA) - \$ 1,000 deductible	253.53	
TOTAL		\$4,118.83	

Interested Parties:

Lienholder (Loss Payee): SOUTH STATE BANK, NA ISAOA/ATIMA, PO BOX 2590, COPPELL, TX 75019-8600

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Leased Auto

Non-stacked Uninsured Motorist Coverage selected.

Stated Amount (SA) - See Notice to Policyholder Stated Amount 58177 (01-15).

Rate Effective Date 06-08-2025

150 0028126

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114Company
BillPOLICY NUMBER
Company Use53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
15. 2018 FORD F450 EQUIP/CUST VIN: 1FDUF4GT7JEC13762	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,653.88
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	183.22
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	12.70
Medical Payments	\$ 5,000 each person	3.19
Comprehensive	ACV - \$ 1,000 deductible	147.64
Collision	ACV - \$ 1,000 deductible	234.97
	TOTAL	\$4,235.60

Interested Parties:

Lienholder (Loss Payee): NATIONAL BANK OF COMMERCE, PO BOX 160, FLORENCE, AL 35631-0160

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Cab Chassis Truck 16,001 - 19,500 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Premium includes rating based on Equipment/Custom Furnishing value of \$3,145 for:

DESCRIPTION UNKNOWN

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0037780

16. 2018 LNDR RANGE ROVER VIN: SALGS2SV6JA515263	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$2,235.28
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	397.97
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	54.31
Medical Payments	\$ 5,000 each person	16.02
Comprehensive	ACV - \$ 1,000 deductible	309.78
Collision	ACV - \$ 1,000 deductible	485.47
	TOTAL	\$3,498.83

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Auto is occasionally used for business duties by a 63 year old.

Cost Symbol: 66-2A-61-3B-66.

Commercial Auto Plus Coverage Package - Standard applies

6% Anti-Theft Device Discount applies.

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
17. 2020 CHEV SILVERADO VIN: 3GCNWAEF8LG430446	005 Orange County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$6,319.03
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	55.99
Medical Payments	\$ 5,000 each person	8.63
Comprehensive	ACV - \$ 1,000 deductible	185.35
Collision	ACV - \$ 1,000 deductible	345.74
	TOTAL	\$7,272.28

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0028300

18. 2018 TOYT TACOMA VIN: 5TFRX5GN4JX126436	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,076.82
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	50.06
Medical Payments	\$ 5,000 each person	12.59
Comprehensive	ACV - \$ 1,000 deductible	97.60
Collision	ACV - \$ 1,000 deductible	208.79
	TOTAL	\$4,001.69

Interested Parties:

Lienholder (Loss Payee): SOUTH STATE NA, PO BOX 2590, COPPELL, TX 75019-8600

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0026975

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
19. 2018 GMC CANYON VIN: 1GTH5BEA1J1206022	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,107.50
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	50.06
Medical Payments	\$ 5,000 each person	12.59
Comprehensive	ACV - \$ 1,000 deductible	90.83
Collision	ACV - \$ 1,000 deductible	205.00
	TOTAL	\$4,021.81

Interested Parties:

Lienholder (Loss Payee): SOUTHSTATE BANK NA, ISAOA ATIMA, 3240 CARDINAL DR, VERO BEACH, FL 32963-4923

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0024355

20. 2022 FORD F250 EQUIP/CUST VIN: 1FT7W2B6XNEG22433		051 Indian River County, FL
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$4,281.18
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	36.03
Medical Payments	\$ 5,000 each person	9.06
Comprehensive	ACV - \$ 1,000 deductible	210.09
Collision	ACV - \$ 1,000 deductible	397.26
TOTAL		\$5,291.16

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Premium includes rating based on Equipment/Custom Furnishing value of \$20,295 for:

DESCRIPTION UNKNOWN

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0046630

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
21. 2015 NISS FRONTIER VIN: 1N6BD0CTXFN703066	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$2,994.11
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	529.78
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	46.47
Medical Payments	\$ 5,000 each person	11.68
Comprehensive	ACV - \$ 1,000 deductible	58.62
Collision	ACV - \$ 1,000 deductible	127.82
	TOTAL	\$3,768.48

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0021970

22. 2015 NISS NV200 VIN: 3N6CM0KN0FK733853	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$2,986.19
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	529.78
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	35.59
Medical Payments	\$ 5,000 each person	8.95
Comprehensive	ACV - \$ 1,000 deductible	61.95
Collision	ACV - \$ 1,000 deductible	125.03
	TOTAL	\$3,747.49

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Compact Van <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0021710

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114Company
BillPOLICY NUMBER
Company Use53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
23. 2017 RAM 1500 VIN: 3C6JR6DT0HG632951		035 Collier County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,440.71	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	28.99	
Medical Payments	\$ 5,000 each person	8.03	
Comprehensive	ACV - \$ 1,000 deductible	103.64	
Collision	ACV - \$ 1,000 deductible	198.13	
TOTAL		\$4,137.04	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0026295

24. 2020 CHEV SILVERADO VIN: 3GCMWAEH3LG281591		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,872.95	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	34.32	
Medical Payments	\$ 5,000 each person	8.63	
Comprehensive	ACV - \$ 1,000 deductible	121.97	
Collision	ACV - \$ 1,000 deductible	254.31	
TOTAL		\$4,649.72	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0028300

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
25. 2020 CHEV SILVERADO VIN: 3GCNWA9H9LG347030		035 Collier County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,516.24	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	31.16	
Medical Payments	\$ 5,000 each person	8.63	
Comprehensive	ACV - \$ 1,000 deductible	129.15	
Collision	ACV - \$ 1,000 deductible	268.59	
TOTAL		\$4,311.31	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0028300

26. 2021 GMC SIERRA VIN: 3GTN8AEH0MG267837		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,889.59	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	357.54	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	35.19	
Medical Payments	\$ 5,000 each person	8.85	
Comprehensive	ACV - \$ 1,000 deductible	127.61	
Collision	ACV - \$ 1,000 deductible	271.15	
TOTAL		\$4,689.93	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Pickup Truck 6,001 - 10,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0029700

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
27. 2018 ISU NPR HD VIN: 54DC4W1B6JS809217		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,056.96	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	317.73	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	17.71	
Medical Payments	\$ 5,000 each person	4.45	
Comprehensive	ACV - \$ 1,000 deductible	84.86	
Collision	ACV - \$ 1,000 deductible	120.44	
TOTAL		\$3,602.15	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Straight Truck 14,001 - 15,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0025260

28. 2020 FORD TRANSIT CONNECT VIN: NM0LS7E24L1472904		035 Collier County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$2,845.61	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	36.51	
Medical Payments	\$ 5,000 each person	10.11	
Comprehensive	ACV - \$ 1,000 deductible	118.11	
Collision	ACV - \$ 1,000 deductible	266.82	
TOTAL		\$3,832.99	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Compact Van <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0025275

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
29. 2013 FORD F550 VIN: 1FDUF5GTXD8B70030	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,283.39
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	158.77
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	11.23
Medical Payments	\$ 5,000 each person	2.82
Comprehensive	ACV - \$ 1,000 deductible	102.67
Collision	ACV - \$ 1,000 deductible	132.11
	TOTAL	\$3,690.99

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Cab Chassis Truck 16,001 - 19,500 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0034825

30. 2024 CHEV 4500 EQUIP/CUST VIN: 54DCDW1D8RS202717	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,455.36
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	317.73
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	20.49
Medical Payments	\$ 5,000 each person	5.15
Comprehensive	ACV - \$ 1,000 deductible	156.25
Collision	ACV - \$ 1,000 deductible	691.79
	TOTAL	\$4,646.77

Interested Parties:

Lienholder (Loss Payee): CYPRESS BANK & TRUST ISAOA/ATIMA, 6115 N WICKHAM RD, MELBOURNE, FL 32940-2035

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Straight Truck 14,001 - 15,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Premium includes rating based on Equipment/Custom Furnishing value of \$35,823 for:

DESCRIPTION UNKNOWN

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0063240

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
31. 2025 ISU NPR HD VIN: 54DC4W1D0SS201776	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,467.09
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	317.73
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	20.99
Medical Payments	\$ 5,000 each person	5.28
Comprehensive	ACV - \$ 1,000 deductible	139.20
Collision	ACV - \$ 1,000 deductible	411.44
	TOTAL	\$4,361.73

Interested Parties:

Lienholder (Loss Payee): CYPRESS BANK & TRUST ISAOA/ATIMA, 6115 N WICKHAM RD, MELBOURNE, FL 32940-2035

Additional Endorsements For This Item: 58455 (07-23) 58903 (10-17) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Straight Truck 14,001 - 15,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0058391

32. 2023 TOYT TACOMA VIN: 3TYRX5GN4PT089018	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,140.98
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	56.47
Medical Payments	\$ 5,000 each person	14.20
Comprehensive	ACV - \$ 1,000 deductible	146.48
Collision	ACV - \$ 1,000 deductible	339.75
	TOTAL	\$4,253.71

Interested Parties:

Lessor (Additional Insured and Loss Payee): CYPRESS BANK & TRUST ISAOA/ATIMA, 6115 N WICKHAM RD, MELBOURNE, FL 32940-2035

Additional Endorsements For This Item: 58455 (07-23) 58591 (04-15) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0029040

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
33. 2017 TOYT TACOMA VIN: 5TFRX5GNXHX095011		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,044.74	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	48.86	
Medical Payments	\$ 5,000 each person	12.29	
Comprehensive	ACV - \$ 1,000 deductible	89.47	
Collision	ACV - \$ 1,000 deductible	183.08	
TOTAL		\$3,934.27	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0026205

34. 2013 NISS FRONTIER VIN: 1N6AD0CU8DN748458		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$2,867.22	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	481.66	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	44.25	
Medical Payments	\$ 5,000 each person	11.13	
Comprehensive	ACV - \$ 1,000 deductible	50.99	
Collision	ACV - \$ 1,000 deductible	93.78	
TOTAL		\$3,549.03	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0023040

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114Company
BillPOLICY NUMBER
Company Use53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

		TERRITORY	CLASS
35. 2018 TOYT TACOMA VIN: 5TFRX5GN6JX104891		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$3,076.82	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	50.06	
Medical Payments	\$ 5,000 each person	12.59	
Comprehensive	ACV - \$ 1,000 deductible	97.60	
Collision	ACV - \$ 1,000 deductible	208.79	
TOTAL		\$4,001.69	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0026975

36. 2004 ISU NPR VIN: JALC4B14447011402		051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM	
Combined Liability	\$1Million each accident	\$2,102.01	
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	178.93	
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	12.53	
Medical Payments	\$ 5,000 each person	3.15	
Comprehensive	ACV - \$ 1,000 deductible	40.61	
Collision	ACV - \$ 1,000 deductible	60.68	
TOTAL		\$2,397.91	

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Straight Truck 14,001 - 15,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0031592

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
37. 2018 TOYT TACOMA VIN: 5TFRX5GN6JX107614	051 Indian River County, FL	

COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,076.82
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	555.83
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	50.06
Medical Payments	\$ 5,000 each person	12.59
Comprehensive	ACV - \$ 1,000 deductible	97.60
Collision	ACV - \$ 1,000 deductible	208.79
TOTAL		\$4,001.69

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Mid Size Truck <= 6,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0026975

38. 2024 CHEV 4500 VIN: 54DCDW1D5RS208801	051 Indian River County, FL
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COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1Million each accident	\$3,455.36
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	317.73
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	20.49
Medical Payments	\$ 5,000 each person	5.15
Comprehensive	ACV - \$ 1,000 deductible	137.30
Collision	ACV - \$ 1,000 deductible	428.63
TOTAL		\$4,364.66

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Straight Truck 14,001 - 15,000 GVW operated within a 100 mile radius.

CLASS (01120): Exterminators/Pest Control.

Commercial Auto Plus Coverage Package - Standard applies

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150 0063240

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

	TERRITORY	CLASS
39. 2022 CHEV SUBURBAN VIN: 1GNSCCKD6NR352009	051 Indian River County, FL	
COVERAGES	LIMITS	PREMIUM
Combined Liability	\$1 Million each accident	\$2,416.53
Uninsured Motorist	\$ 100,000 each person/\$ 100,000 each accident	397.97
Personal Injury Protection	Medical and Disability - \$10,000 each person Medical limited to \$2,500 non-emergency Death Benefits - \$5,000 each person	75.75
Medical Payments	\$ 5,000 each person	15.04
Comprehensive	ACV - \$ 1,000 deductible	212.18
Collision	ACV - \$ 1,000 deductible	322.19
	TOTAL	\$3,439.66

Interested Parties: None

Additional Endorsements For This Item: 58455 (07-23) 58428 (08-21) 58308 (07-23)

ITEM DETAILS: Auto is occasionally used for business duties by a 37 year old.

Cost Symbol: 36-MB-29-3D-60.

Commercial Auto Plus Coverage Package - Standard applies

6% Anti-Theft Device Discount applies.

Vehicle Count Factor Applies.

Non-stacked Uninsured Motorist Coverage selected.

Rate Effective Date 06-08-2025

150

Endorsements That Apply To This Policy

Additional Endorsements

	PREMIUM
Waiver of Our Right to Recover Payments - Blanket	Flat Charge \$50.00
Designated Insured - Blanket	Flat Charge 50.00
Primary and Noncontributory Coverage - Blanket	Flat Charge 100.00
TOTAL	\$200.00

Commercial Auto Plus Coverage Package - Standard

051
Indian River County, FL

COVERAGES	PREMIUM
See Commercial Auto Plus Coverage Package - Standard Declarations	\$573.37
TOTAL	\$573.37

Additional Endorsements For This Item: 58514 (01-22)

ITEM DETAILS: 39 qualified item(s).

Physical damage coverages apply under the Commercial Auto Plus Coverage Package - Standard to qualified items that have the applicable comprehensive and/or collision coverage(s). Liability coverages provided by this endorsement apply to covered autos insured for liability.

Rate Effective Date 06-08-2025

150

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
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POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

TERRITORY CLASS

	TERM
ESTIMATED TOTAL PREMIUM	\$165,564.78
PAID IN FULL DISCOUNT	-14,882.08
ESTIMATED TOTAL PREMIUM IF ON FULL PAY PLAN BY 09/29/2025	\$150,682.70

The Paid In Full Discount does not apply to fixed fees or statutory charges.

A 5% Cumulative Multi-Policy Discount applies. Supporting policies are marked with an (X): Comm Umb()
Comm Prop/Comm Liab(X) WC() Life() Personal() Farm().

Fleet Monitoring Discount applies.

00351
561710

Countersigned By: BROWN & BROWN INSURANCE SERVICES INC

AUTO-OWNERS INS. CO.

Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company
Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS

The coverages, limits, and deductibles indicated below apply separately to each auto afforded the Commercial Auto Plus Coverage Package - Standard as identified in the Item Details section of the item regardless of the number of autos designated in the Commercial Auto Declarations.

Commercial Auto Plus Coverage Package - Standard

COVERAGE	LIMITS
Supplementary Payments	\$5,000 bail bonds \$500 per day additional expenses
Waiver of Collision Deductible for Collision With Another Auto-Owners Insured	See form
Waiver of Deductible for Covered Autos	See form
Non-Owned Trailer Physical Damage	\$1,000 per loss
Personal Property	\$600 per loss
Audio, Visual or Data Electronic Equipment	\$2,500 per loss \$200 per loss for media and accessories
Business Personal Property	\$500 per loss \$50 deductible
Hired Autos Physical Damage Comprehensive	ACV not exceed \$50,000 \$100 deductible each covered auto
Collision	ACV not exceed \$50,000 \$250 deductible each covered auto
Transportation Costs	\$100 per disablement
Transportation Expenses Following Theft	\$50 per day \$1,500 per loss
Motor Cargo	\$1,000 per loss
Air Bag Replacement	See form \$50 deductible
Common Loss Deductible - Motor Cargo	See form
Replacement Cost on New Vehicles	Within 90 days of purchase
Rental Auto Gap Coverage	See form

NAMED INSURED SCHEDULE

CLEMENTS PEST CONTROL SERVICES LLC

CLEMENTS PEST CONTROL SERVICES

SOUTHWEST LLC

DBA CLEMENTS P C SERVICES

CLEMENTS PEST CONTROL SERVICES MARTIN LLC

CLEMENTS PEST CONTROL SERVICES ORANGE LLC

INSURANCE COMPANY
6101 ANACAPRI BLVD., LANSING, MI 48917-3999AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114 (386) 252-9601NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC
SEE FORM 59270ADDRESS 4036 43RD AVE
VERO BEACH FL 32960-1805**COMMERCIAL AUTO POLICY DECLARATIONS
PREFERRED PROGRAM**

Renewal Effective 09-29-2025

POLICY NUMBER 53-543-687-00

Company Use 72-02-FL-2109

Company
Bill

POLICY TERM	
12:01 a.m.	12:01 a.m.
09-29-2025	09-29-2026

In consideration of payment of the premium shown below, this policy is renewed. Please attach this Declarations and attachments to your policy. If you have any questions, please consult with your agent.

0724

Scheduled Drivers List

Listed below are drivers currently scheduled on this policy. Please compare the list with your current records and contact your agent with any changes that need to be made. We will update the list accordingly for the next renewal.

Name: Last	First	Age	State
SLADE	TIM	64	FL
MACE	MIKE	58	FL
STEVENS	RUSTY	59	FL
SLADE	DEBBIE	* 63	FL
COLONTRELLE	JASON	44	FL
KOEHLER	CHAD	44	FL
FOSTER	GRAHAM	57	FL
SEGROVES	ROBERT	56	FL
NESBITT	CORY	35	FL
GOETZ	ADAM	38	FL
MAIN	JOSHUA	35	FL
SLADE	CHRISTOPHER	* 37	FL
TRAVELUTE	EDWARD	56	FL
LIBERTI	STEVEN	73	FL
FARLESS	STEVE	63	FL
BUTLER	DAVID	43	FL
LAWRENCE	COTE	32	FL
GALINDO	JAVIER	24	FL
GONZALEZ	JESSE	33	FL
HOYT	SARAH	48	FL
BORDEN	JASON	47	FL
COFFEY	LOGAN	33	FL
SLADE	JADE	32	FL
RAMOS-GARCIA	LUIS	45	FL
DEER	EUSEBIO	43	FL
KING	GARRETT	30	FL
CARTER	COREY	34	FL
MADDEN	KELLEN	40	FL
HUGHES	MICHAEL	42	FL

AUTO-OWNERS INS. CO.

58974 (1-17)
Issued 08-14-2025

AGENCY BROWN & BROWN INSURANCE SERVICES INC
12-0351-00 MKT TERR 114

Company Bill

POLICY NUMBER
Company Use

53-543-687-00
72-02-FL-2109

NAMED INSURED CLEMENTS PEST CONTROL SERVICES LLC

Term 09-29-2025 to 09-29-2026

Name: Last	First	Age	Date of Birth MM-DD-CCYY	State
RENTERIA	JASON	27		FL
NEAL	BENJAMIN	24		FL
TEJEDA	CHRISTIAN	35		FL
SANDERS	DARIUS	29		FL
JOHNS	JACOB	44		FL
ETTER	TYLER	40		FL

* DRIVER ASSIGNED TO PRIVATE PASSENGER VEHICLE FOR RATING PURPOSES.

Commercial Auto Policy

Auto-Owners Insurance Company

POLICY NON-ASSESSABLE

This policy is non-assessable. Subject to the provisions of General Condition 5. Changes and any audit provisions of any coverage provided, the premium shown in the Declarations is the only premium you will be asked to pay.

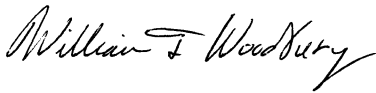
PARTICIPATING

You will be entitled to an equitable participation in Company funds in excess of the amount required to pay expenses and all the losses or claims or other policy obligations incurred, together with the reserve and surplus funds required or permitted by law. A distribution will be made only in accordance with the decision of our Board of Directors acting under the insurance laws and under our charter.

NOTICE OF MEMBERSHIP AND ANNUAL MEETING

Because we are a mutual company, this policy makes you a member of the Auto-Owners Insurance Company. You are entitled to vote, in person or by proxy, at all meetings. Our annual policyholder's meetings are held at our home office at Lansing, Michigan on the second Monday in May in each year at 10:00 A.M.

In witness whereof, we, the Auto-Owners Insurance Company, have caused this policy to be issued and to be duly signed by our President and Secretary.



Secretary



President

QUICK REFERENCE

THE DECLARATIONS PAGE SHOWS THE: **NAMED INSURED**
 SCHEDULE OF COVERED AUTOS AND COVERAGES
 LIMIT OF INSURANCE
 ENDORSEMENTS THAT APPLY TO THIS POLICY
 PREMIUM

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COMMERCIAL AUTO POLICY

Various provisions in this policy restrict coverage. Read the entire policy carefully to determine rights, duties and what is and is not covered. Throughout this policy, words and phrases that appear in **bold face type** have special meaning. Refer to SECTION VI - DEFINITIONS. The descriptions in the headings of this policy and all applicable endorsements are solely for convenience and are not part of the terms and conditions of coverage.

SECTION I - COVERED AUTOS

A. COVERED AUTO DESIGNATION SYMBOLS

The following symbols describe the **autos** for which coverage may be provided. Symbols shown next to

the various coverages in the Declarations designate only those **autos** which shall be considered covered **autos** for each such coverage.

Symbol	Description Of Covered Auto Designation Symbols	
1	Any Auto	
2	Owned Autos Only	Only those autos you own (and for Covered Autos Liability Coverage any trailer you do not own while connected to or accidentally disconnected from a power unit you own). This includes those autos you acquire ownership of after the policy begins.
3	Owned Private Passenger Autos Only	Only private passenger autos you own (and for Covered Autos Liability Coverage any trailer while connected to or accidentally disconnected from a private passenger auto you own). This includes those private passenger autos you acquire ownership of after the policy begins.
4	Owned Autos Other Than Private Passenger Autos Only	Only those autos you own that are not private passenger autos (and for Covered Autos Liability Coverage any trailer while connected to or accidentally disconnected from a power unit, other than a private passenger auto, you own). This includes those autos that are not private passenger autos you acquire ownership of after the policy begins.
5	Owned Autos Subject To No-fault	Only those autos you own that are required by law to have no-fault benefits in the state in which they are licensed or principally garaged. This includes those autos you acquire ownership of after the policy begins provided they are required to have no-fault benefits in the state where they are licensed or principally garaged.
6	Owned Autos Subject To A Compulsory Uninsured Motorist Law	Only those autos you own that are required by law of the state in which they are licensed or principally garaged to have and cannot reject Uninsured Motorist Coverage. This includes those autos you acquire ownership of after the policy begins provided they are subject to the same state uninsured motorist requirement.
7	Scheduled Autos Only	Only those autos scheduled in the Declarations for which a premium charge is shown (and for Covered Autos Liability Coverage any trailer while connected to or accidentally disconnected from a power unit scheduled in the Declarations).
8	Hired Autos Only	Only those autos you lease, hire, rent or borrow. This does not include any auto you lease, hire, rent or borrow from any of your employees , partners (if you are a partnership), members (if you are a limited liability company), executive officers (if you are a corporation), or members of their households.
9	Non-owned Autos Only	Only those autos you do not own, lease, hire, rent or borrow that are used in connection with your business . This includes autos owned by your employees , partners (if you are a partnership), members (if you are a limited liability company), executive officers (if you are a corporation), or members of their households, but only while used in your business or your personal affairs .

Symbol	Description Of Covered Auto Designation Symbols	
19	Mobile Equipment Subject To Compulsory Or Financial Responsibility Or Other Motor Vehicle Insurance Law Only	Only those autos that are land vehicles and that would qualify under the definition of mobile equipment under this policy if they were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where they are licensed or principally garaged.

B. NEWLY ACQUIRED AUTOS

If Symbol 7 is entered next to a coverage in Item Two of the Declarations, then:

1. Coverage

- a. An **auto you** acquire ownership of shall be a covered **auto** provided:
 - (1) The date **you** acquire ownership of the **auto** is during the policy term shown in the Declarations;
 - (2) No other insurance policy provides coverage for the **auto**; and
 - (3) **We** already cover all other **autos you** own, that are licensed for use on public roadways, except any that are out of service because of mechanical breakdown or damage sustained in an **accident**; and
- b. If such **auto you** acquire ownership of:
 - (1) Replaces an **auto you** previously owned, it shall be provided only those coverages which applied to the replaced **auto**.
 - (2) Is an additional **auto** (that is not a **trailer**), it shall be provided the following coverages:
 - (a) For other than physical damage coverage, it shall be provided the broadest coverages applicable to any one covered **auto** (that is not a **trailer**).
 - (b) For physical damage coverage, it shall be provided only those coverages (regardless of deductible) common to all of **your** other covered **autos**. The deductible shown in Item Two of the Declarations shall apply.
 - (3) Is an additional **auto** (that is a **trailer**), it shall be provided only those physical damage coverages (regardless of deductible) common to all of **your** other covered **autos**. The deductible shown in Item Two of the Declarations shall apply.

2. Duration of Coverage

Coverage for an **auto you** acquire ownership of shall apply for the remainder of the policy term or 30 days from the date **you** acquired

ownership of the **auto** if this policy is renewed, whichever is longer.

3. Reporting

You must report all **autos you** acquire ownership of to **us** by the expiration of the policy term during which the **auto** was acquired or 30 days from the date **you** acquired the **auto** if this policy is renewed, whichever is longer.

4. Premium

You will be charged the premium for all **autos you** acquire ownership of that are provided coverage under this extension from the date **you** acquired the **autos**.

5. Option to Purchase Physical Damage Coverage

You may at any time during the first 30 days after **you** acquire ownership of the **auto**, purchase the broadest physical damage coverages applicable to any one **auto** already scheduled in the Declarations.

C. TRAILERS AND MOBILE EQUIPMENT

The Covered Autos Liability Coverage provided by this policy for an **auto** extends to:

1. A **trailer** that is not connected to an **auto**, provided such **trailer**:
 - a. Has a load capacity of 2,000 pounds or less; and
 - b. Is owned by or is in the care, custody or control of:
 - (1) **You**;
 - (2) A **family member**, if **you** are an individual, who owns an **auto** (that is not a **trailer**) scheduled in the Declarations for Covered Autos Liability Coverage or who only owns a **trailer**; or
 - (3) Any other individual or organization who owns an **auto** (that is not a **trailer**) scheduled in the Declarations for Covered Autos Liability Coverage.

Coverage only applies for the ownership or use of the **trailer** by the individuals or organizations described in (1), (2) and (3) immediately above.

2. A **trailer** that is connected to an **auto** (that is not a **trailer**) to which Covered Autos Liability Coverage provided by this policy does not apply, provided such **trailer**:
 - a. Has a load capacity of 2,000 pounds or less; and

b. Is owned by:**(1) You;**

(2) A family member, if **you** are an individual, who owns an **auto** (that is not a **trailer**) scheduled in the Declarations for Covered Autos Liability Coverage or who only owns a **trailer**; or

(3) Any other individual or organization who owns an **auto** (that is not a **trailer**) scheduled in the Declarations for Covered Autos Liability Coverage.

Coverage only applies for the ownership of the **trailer** arising from the use of the **trailer** by an individual or organization other than the **trailer** owner. No coverage applies to the owner or operator of the **auto** (that is not a **trailer**) to which the **trailer** is connected.

- 3. Mobile equipment** while being carried or towed by a covered **auto**.
- 4. Non-motorized farm machinery or farm wagons** while connected to or accidentally disconnected from such covered **auto**.

D. TEMPORARY SUBSTITUTE AUTOS

Any **auto you** do not own while used with the permission of its owner as a temporary substitute for a covered **auto you** own that is out of service because of its:

- 1. Breakdown;**
- 2. Repair;**
- 3. Servicing;**
- 4. Loss; or**
- 5. Destruction**

shall be provided only those coverages which apply to such covered **auto** that is out of service.

E. HIRED AUTOS

Any leased, hired, rented or borrowed **auto** scheduled in the Declarations will be considered a covered **auto you** own and not a covered **auto you** lease, hire, rent or borrow.

SECTION II - COVERED AUTOS LIABILITY COVERAGE

A. COVERAGE

We will pay all sums an **insured** legally must pay as damages because of **bodily injury** or **property damage** to which this insurance applies, caused by an **accident** and resulting from the ownership, maintenance or use of a covered **auto** as an **auto**.

We will also pay all sums an **insured** legally must pay as a **covered pollution cost or expense** to which this insurance applies, caused by an **accident** and resulting from the ownership, maintenance or use of a covered **auto** as an **auto**. However, **we** will only pay for the **covered pollution cost or expense** if there is either **bodily injury** or **property damage** to which this insurance applies that is caused by the same **accident**.

We will investigate, settle or defend, as **we** consider appropriate, any claim or **suit** for damages or a **covered pollution cost or expense**, covered by this policy. **We** will do this at **our** expense, using attorneys of **our** choice. **Our** duty to defend or settle ends when the Limit of Insurance for Covered Autos Liability Coverage has been exhausted by payment of judgments or settlements.

1. Who Is An Insured

The following are **insureds**:

a. You for any covered **auto**.

b. Anyone else while using, with **your** permission, a covered **auto** (that is not a **trailer**) **you** own, lease, hire, rent or borrow except:

- (1) (a)** The owner or anyone else, from whom such covered **auto** is leased, hired, rented or borrowed; or

(b) Any **employee**, agent or driver of the owner or anyone else, from whom such covered **auto** is leased, hired, rented or borrowed.

(2) Your **employee**, partner (if **you** are a partnership), member (if **you** are a limited liability company) or **executive officer** (if **you** are a corporation), if such covered **auto** is owned by him or her or a member of his or her household.

(3) A person using such covered **auto** while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering or testing **autos**, unless that business is **yours**.

(4) A person, other than an **employee**, partner (if **you** are a partnership), member (if **you** are a limited liability company) or **executive officer** (if **you** are a corporation), or a lessee or borrower or any of their **employees**, while moving property to or from such covered **auto**.

c. The owner of a **trailer**, non-motorized farm machinery or farm wagon only when connected to or accidentally disconnected from a covered **auto**.

d. A partner (if **you** are a partnership), a member (if **you** are a limited liability company) or an **executive officer** (if **you** are a corporation) while someone, other than **you**, is using with **your** permission a covered **auto**

you do not own, lease, hire, rent or borrow, in connection with **your** business.

e. If **you** are an individual:

- (1) A **family member** who does not own an **auto** (that is not a **trailer**); and
- (2) A **family member** who owns an **auto** scheduled in the Declarations while using a covered **auto**; and
- (3) Anyone else while using, with the permission of a **family member**, a scheduled **auto**.

f. Anyone liable for the conduct of an **insured** described in 1.a. through 1.e. immediately above, only to the extent of that liability.

g. Any other individual or organization who owns an **auto** (that is not a **trailer**) scheduled in the Declarations while using a scheduled **auto**.

h. Those individuals or organizations described in 1.e. and 1.g. immediately above for liability associated with ownership or use of a **trailer** not scheduled in the Declarations which is owned by such individual or organization only when such **trailer**:

- (1) Has a load capacity of 2,000 pounds or less; and
- (2) Is not connected to an **auto**; or
- (3) Is connected to an **auto** (that is not a **trailer**) to which Covered Autos Liability Coverage is not provided by this policy while such **trailer** is being used by an individual or organization other than the **trailer** owner.

i. While any covered **auto** scheduled in the Declarations is rented or leased to **you** and is being used by or for **you**, its owner or anyone else from whom **you** rent or lease it is an **insured** but only for that covered **auto**.

2. Coverage Extensions

a. Supplementary Payments

In addition to **our** Limit of Insurance for Covered Autos Liability Coverage, **we** will also pay:

- (1) Premiums on appeal bonds in any **suit** **we** defend. **We** will not apply for or furnish such bonds.
- (2) Premiums on bonds to release attachments in any **suit** against an **insured** **we** defend, but only for bond amounts that do not exceed the applicable Limit of Insurance. **We** will not apply for or furnish such bonds.
- (3) Up to \$2,000 for the cost of bail bonds (including bonds for related traffic law violations) required because of an **accident** **we** cover. **We** will not apply for or furnish such bonds.

(4) Interest on damages owed by an **insured** because of a judgment in a **suit** **we** defend and accruing:

- (a) After the judgment, and until **we** pay, offer or deposit in court, the amount for which **we** are liable under this policy; or
- (b) Before the judgment, where owed by law, but only on that part of the judgment **we** pay.

(5) Expenses an **insured** incurs for first aid to others at the time of an **accident** covered by this policy.

(6) All court costs taxed against an **insured** in any **suit** against that **insured** which **we** defend.

(7) All reasonable expenses incurred by an **insured** at **our** request, including actual loss of earnings up to \$250 per day.

b. Out-of-state Coverage Extensions

While a covered **auto** is away from the state where it is licensed, **we** will:

- (1) Increase the Limit of Insurance for Covered Autos Liability Coverage to meet the limits specified by a compulsory or financial responsibility law of the jurisdiction where the covered **auto** is being used. This extension does not apply to the limit or limits specified by any law governing motor carriers of passengers or property.
- (2) Provide the minimum amounts and types of other coverages, such as no-fault, required of out-of-state vehicles by the jurisdiction where the covered **auto** is being used.

We will not duplicate payments available under this or any other insurance for the same elements of **loss**.

B. EXCLUSIONS

This insurance does not apply to any of the following:

1. Care, Custody or Control

Property damage to or **covered pollution cost or expense** involving property owned or transported by the **insured** or in the **insured's** care, custody or control. This exclusion does not apply to:

- a. Liability assumed under a sidetrack agreement; or
- b. **Property damage** to a residence or private garage, caused by a covered **private passenger auto**, when the residence or private garage is in the care, custody or control of the **insured**.

2. Contractual

Liability for **bodily injury** or **property damage** assumed under any contract or agreement. This exclusion does not apply to liability for damages:

- a. Assumed in a contract or agreement that is an **insured contract** provided that the **bodily injury** or **property damage** occurs subsequent to the execution of such contract or agreement;
- b. That the **insured** would have in the absence of the contract or agreement; or
- c. Assumed in a **private passenger auto** lease or rental agreement, provided **you** are an individual and a party to the contract.

3. Employee Indemnification and Employer's Liability

Bodily injury to:

- a. An **employee** of the **insured** arising out of and in the course of:
 - (1) Employment by the **insured**; or
 - (2) Performing the duties related to the conduct of the **insured's** business; or
- b. The spouse, child, parent, brother or sister of that **employee** as a consequence of Paragraph **3.a.** above.

This exclusion applies:

- a. Whether the **insured** may be liable as an employer or in any other capacity; and
- b. To any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to **bodily injury** to **domestic employees** not entitled to workers compensation benefits or to liability assumed by the **insured** under an **insured contract**.

4. Fellow Employee

Bodily injury to:

- a. Any fellow **employee** of any **insured** arising out of and in the course of the fellow **employee's** employment or while performing duties related to the conduct of **your** business; or
- b. The spouse, child, parent, brother or sister of the fellow **employee** as a consequence of Paragraph **4.a.** above.

5. Expected or Intended Injury

Bodily injury or **property damage** expected or intended from the standpoint of the **insured**.

6. Handling of Property

Bodily injury or **property damage** resulting from the handling of property:

- a. Before it is moved from the place where it is accepted by the **insured** for movement into or onto the covered **auto**;

- b. After it is moved from the covered **auto** to the place where it is finally delivered by the **insured**; or
- c. To or from any non-motorized farm machinery or farm wagon.

7. Operations

Bodily injury or **property damage** arising out of the operation of:

- a. Any equipment listed in Paragraphs **6.b.** and **6.c.** of the definition of **mobile equipment**.
- b. Machinery or equipment that is in, upon or attached to a land vehicle that would qualify under the definition of **mobile equipment** if it were not subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.
- c. Machinery or equipment that is in, upon or attached to a **trailer**, non-motorized farm machinery or farm wagon.

8. Completed Operations

Bodily injury or **property damage** arising out of **your** work after that work has been completed or abandoned.

In this exclusion, **your** work means:

- a. Work or operations performed by **you** or on **your** behalf; and
- b. Materials, parts or equipment furnished in connection with such work or operations.

Your work includes warranties or representations made at any time with respect to the fitness, quality, durability or performance of any of the items included in Paragraph **8.a.** or **8.b.** above.

Your work will be deemed completed at the earliest of the following times:

- a. When all of the work called for in **your** contract has been completed;
- b. When all the work to be done at the site has been completed if **your** contract calls for work at more than one site; or
- c. When that part of the work done at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same project.

Work that may need service maintenance, correction, repair or replacement, but which is otherwise complete, will be treated as completed.

9. Pollution

- a. **Bodily injury** or **property damage** arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of **pollutants**:

- (1) That are, or that are contained in any property that is:

- (a) Being transported or towed by, handled or handled for movement into, onto or from the covered **auto**;
 - (b) Otherwise in the course of transit by or on behalf of the **insured**; or
 - (c) Being stored, disposed of, treated or processed in or upon the covered **auto**;
- (2) Before the **pollutants** or any property in which the **pollutants** are contained are moved from the place where they are accepted by the **insured** for movement into or onto the covered **auto**; or
- (3) After the **pollutants** or any property in which the **pollutants** are contained are moved from the covered **auto** to the place where they are finally delivered, disposed of or abandoned by the **insured**.
- b. Paragraph 9.a.(1) above does not apply to fuels, lubricants, fluids, exhaust gases or other similar **pollutants** that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the covered **auto** or its parts, if:
- (1) The **pollutants** escape, seep, migrate, or are discharged, dispersed or released directly from an **auto** part designed by its manufacturer to hold, store, receive or dispose of such **pollutants**; and
 - (2) The **bodily injury, property damage or covered pollution cost or expense** does not arise out of the operation of any equipment listed in Paragraphs 6.b. and 6.c. of the definition of **mobile equipment**.
- c. Paragraphs 9.a.(2) and 9.a.(3) above do not apply to **accidents** that occur away from premises owned by or rented to an **insured** with respect to **pollutants** not in or upon a covered **auto** if:
- (1) The **pollutants** or any property in which the **pollutants** are contained are upset, overturned or damaged as a result of the maintenance or use of a covered **auto**; and
 - (2) The discharge, dispersal, seepage, migration, release or escape of the **pollutants** is caused directly by such upset, overturn or damage.

10. Public or Livery Conveyance

Bodily injury or property damage arising out of the use of any covered **auto** as a public mode of transportation of people. This exclusion does not apply to car pooling on a share the expense basis.

11. Racing

Bodily injury or property damage arising out of the use of any covered **auto** while participating in any prearranged racing, prearranged high speed driving, prearranged competitive driving or prearranged demolition event. This exclusion also applies while any covered **auto** is preparing for or practicing for any of the previously mentioned events.

12. War or Military Action

Bodily injury or property damage arising directly or indirectly out of:

- a. War, including undeclared or civil war;
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

13. Workers Compensation

Any obligation for which the **insured** or the **insured's** insurer may be held liable under any workers compensation, disability benefits or unemployment compensation law or any similar law.

14. Autos Leased Under Hold Harmless Agreements

Bodily injury or property damage arising out of the use of any covered **auto** (that is not a **trailer**) while:

- a. Leased to **you** in writing in accordance with a written agreement in which the lessor holds **you** harmless; and
- b. Used pursuant to operating rights (permits) granted to **you** by a public authority.

C. LIMIT OF INSURANCE

We will pay damages for **bodily injury, property damage and covered pollution cost or expense** up to the Limit of Insurance shown in the Declarations for this coverage. Such damages shall be paid as follows:

- 1. When combined liability limits are shown in the Declarations, the limit shown for each **accident** is the total amount of coverage and the most we will pay for damages because of or arising out of **bodily injury, property damage and covered pollution cost or expense** in any one **accident**.
- 2. When separate **bodily injury and property damage** limits are shown in the Declarations:
 - a. For **bodily injury**:
 - (1) The limit shown for "each person" is the amount of coverage and the most we

will pay for all damages because of or arising out of **bodily injury** to one person in any one **accident**.

- (2) The limit shown for "each accident" is the total amount of coverage and the most **we** will pay, subject to **2.a.(1)** above, for all damages because of or arising out of **bodily injury** to two or more persons in any one **accident**.

- b. For **property damage**, the limit shown is the amount of coverage and the most **we** will pay for all **property damage** in any one **accident**.

3. The Limit of Insurance applicable to a **trailer**, non-motorized farm machinery or farm wagon which is connected to an **auto** covered by this policy shall be the limit of insurance applicable to such **auto**. The **auto** and connected **trailer**, non-motorized farm machinery or farm wagon are considered one **auto** and do not increase the Limit of Insurance.
4. The Limit of Insurance applicable to a **trailer** covered by this policy but not scheduled in the Declarations:

- a. Which is not connected to an **auto**; or
b. Which is connected to an **auto** not covered for Covered Autos Liability Coverage by this policy

shall be the Limit of Insurance applicable to any covered **auto**.

5. The Limit of Insurance for this coverage may not be added to the limits for the same or similar coverage applying to other **autos** insured by this policy to determine the amount of coverage available for any one **accident** or **covered pollution cost or expense**, regardless of the number of:

- a. Covered **autos**;
b. **Insureds**;
c. Premiums paid;
d. Claims made or **suits** brought;
e. Persons injured; or
f. Vehicles involved in the **accident**.

All **bodily injury**, **property damage** and **covered pollution cost or expense** resulting from continuous or repeated exposure to substantially the same conditions will be considered as resulting from one **accident**.

SECTION III - PHYSICAL DAMAGE COVERAGE

A. COVERAGE

1. **We** will pay for **loss** to a covered **auto** or its **equipment or custom furnishings** under:

a. **Comprehensive Coverage**

From any cause except:

- (1) The covered **auto's** collision with another object; or
(2) The covered **auto's** overturn.

However, **we** will pay for:

- (1) Glass breakage from any cause including upset or collision;
(2) Damage caused by missiles or falling objects; and
(3) Damage caused by collision with an animal or bird.

When a deductible is shown in the Declarations for this coverage, **we** will reduce **our** payment by that amount. The deductible shall not apply to the repair of safety or laminated glass contained within the windshield, rear window, a door window or any other side window of a covered **auto** that is a **private passenger auto**, provided both **you** and **we** agree to the repair. However, the deductible will still apply to:

- (1) Any light or any component of any light to such covered **auto**;
(2) Any glass contained in the roof;
(3) Removable roof panels of any type;
(4) Mirrors of any type; or

- (5) Replacement of any safety or laminated glass.

b. **Collision Coverage**

Caused by:

- (1) The covered **auto's** collision with another object; or
(2) The covered **auto's** overturn.

When a deductible is shown in the Declarations for this coverage, **we** will reduce **our** payment by that amount. The deductible shall not apply when a covered **auto** that is a **private passenger auto** is:

- (1) In a collision with another **auto**:
(a) **We** insure and which **you** do not own, rent or have in **your** care, custody or control; or
(b) Whose owner or operator has been identified; and
1) Is legally responsible for the entire amount of the damage; and
2) Is covered by a **property damage** liability policy or bond but only if the damage exceeds the deductible amount.
(2) Legally parked and is accidentally struck by another of **your private passenger autos**, provided Collision Coverage applies to both **autos**.

2. Road Trouble Service

We will pay up to the amount shown in the Declarations for this coverage each time a covered **auto** that is a **private passenger auto** is disabled:

- a. For towing to the nearest available garage; and
- b. For the cost of labor performed at the place of disablement.

3. Coverage Extensions

a. Trailers

The Comprehensive Coverage and Collision Coverage provided to a covered **auto** will extend to certain **trailers** you do not own. The trailer must:

- (1) Have a load capacity of 2,000 pounds or less;
- (2) Be used with **your private passenger auto**; and
- (3) Be other than a **trailer** of the home, office, store, display or passenger type.

Our limit of insurance under this coverage extension is \$500 in any one **loss**. No deductible applies.

b. Transportation Expenses Following Theft

If Comprehensive Coverage is shown in the Declarations for a **private passenger auto** scheduled in the Declarations, **we** will pay up to \$30 per day but not more than \$900 in any one **loss** for transportation expenses incurred if such **auto** is stolen. **We** will pay such expenses incurred during the period beginning 48 hours after an **insured** reports the theft to **us** and to the police and ending when such **auto** is returned to use or **we** pay for its **loss**.

c. Personal Property

The Comprehensive Coverage and Collision Coverage provided to a covered **auto** that is a **private passenger auto** will extend to **loss** to personal property contained in or on such **auto** as follows:

- (1) Comprehensive Coverage because of:
 - (a) Fire;
 - (b) Lightning; or
 - (c) Theft or attempted theft if there are visible signs of someone breaking into such **auto** or the entire **auto** is stolen; or
- (2) Collision Coverage.

The personal property must be owned by **you**, a **family member** or **your employee**. This coverage extension does not apply to:

- (1) Property used in a business, trade or profession.
- (2) Money or jewelry.
- (3) Property specifically insured.

- (4) Anything that is otherwise excluded by this policy.

Our limit of insurance under this coverage extension is \$300 in any one **loss**. No deductible applies.

d. Air Bag Replacement

The Comprehensive Coverage provided to a **private passenger auto** scheduled in the Declarations will extend to replacement of an air bag that inflates without such **auto** having been involved in a Comprehensive or Collision **loss**. No deductible applies.

e. Loss of Use - Rental Fee Reimbursement

- (1) We shall provide the following extension of coverage when **you** become legally responsible to pay for loss of use of:

- (a) A **private passenger auto** rented or hired without a driver under a written rental contract or agreement and a covered **auto** under this policy is a **private passenger auto** with Comprehensive and Collision Coverages which extend to such rented or hired **private passenger auto**; or
- (b) An **auto** (that is not a **private passenger auto**) rented or hired without a driver under a written rental contract or agreement and such **auto** is provided **Hired Auto Physical Damage** coverage under this policy.

- (2) We shall reimburse **you** or pay on **your** behalf:

- (a) The rental fee that would have been paid if such **auto** (that is a **private passenger auto**); or
- (b) Up to \$30 per day but not more than \$900 in any one **loss**, of the rental fee that would have been paid, if such **auto** (that is not a **private passenger auto**) had not sustained **loss**.

- (3) This coverage begins the day following the **loss** and ends, regardless of the policy expiration date, at the earliest of the following:

- (a) The day repairs to the rental **auto** are completed, not to exceed a period longer than required to repair such **auto**, exercising due diligence and dispatch;
- (b) The day **we** make payment for replacement of the rental **auto**; or
- (c) Thirty (30) days after the date coverage begins.

- (4) **You** or the rental agency must submit proper receipts to **us** for all expenses claimed under this coverage extension.

f. Diminished Value

When Diminished Value Coverage is shown in the Declarations for an **auto**, **we** shall pay:

- (1) An additional 15% of the settlement amount if the model year of such **auto** is no older than the model year of the date of the **loss** and the two prior model years; or
- (2) An additional 10% of the settlement amount for prior model years for damage to such **auto** because of **diminished value**, only if such **auto** is repaired. This provision does not apply to damage to glass.

B. EXCLUSIONS

Comprehensive and Collision Coverages do not apply to:

1. Audio, Visual or Data Electronic Equipment

Loss to any of the following:

- a. Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals. However, such equipment is covered if:
 - (1) Standard or optional equipment for the manufacturer of a covered **auto** for that make, model and model year;
 - (2) Permanently installed in a covered **auto** and was not standard or optional equipment for the manufacturer of such covered **auto** for that make, model and model year; or
 - (3) Scheduled in the Declarations and a premium charged.

Our limit under **a.(2)** above shall not exceed \$1,000 in any one **loss**. No deductible applies to the coverage extension in **a.(2)** above.
- b. Tapes, discs or other similar media designed for use with equipment described in **a.** above.
- c. Any accessories used with the media or equipment described in **a.** or **b.** above.

2. Diminished Value

Loss to a covered **auto** because of or arising out of **diminished value**. This exclusion does not apply to the extent that coverage is provided when Diminished Value Coverage is shown in the Declarations.

3. Expected or Intentional Act

Loss to a covered **auto** because of or arising out of **your** intentional act or an intentional act committed at **your** direction or with **your** knowledge.

4. Conversion, Embezzlement or Secretion

Loss to a covered **auto** because of or arising out of conversion, embezzlement or secretion by any person lawfully having a covered **auto** under a sale, lease or similar agreement.

5. Illegal Activities

Loss to a covered **auto** because of confiscation or destruction by any civil or governmental authorities because of illegal activities engaged in by **you** or a **family member**.

6. Loss of Use

Loss of use of a covered **auto**, except as provided in Coverage Extensions.

7. Nuclear Hazard

Loss caused by or resulting from:

- a. The explosion of any weapon employing atomic fission or fusion; or
- b. Nuclear reaction or radiation, or radioactive contamination, however caused.

8. Racing

Loss to any covered **auto** while participating in any prearranged racing, prearranged high speed driving, prearranged competitive driving or prearranged demolition event. This exclusion also applies while any covered **auto** is preparing for or practicing for any of the previously mentioned events.

9. Radar Detectors

Loss to any device designed or used to:

- a. Detect speed-measuring equipment such as radar or laser detectors; or
- b. Elude or disrupt speed-measuring equipment such as a jamming apparatus.

10. Tires

Loss to tires, unless the **loss** is caused by:

- a. Fire;
 - b. Theft; or
 - c. Malicious mischief; or
- is part of other **loss** covered by this policy.

11. Truck Campers

Loss to:

- a. A truck camper; or
 - b. A pickup cover with built-in cooking and sleeping equipment
- unless scheduled in the Declarations and a premium charged.

12. War or Military Action

Loss caused by or resulting from:

- a. War, including undeclared or civil war;
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power or action taken by governmental

authority in hindering or defending against any of these.

13. Wear and Tear

Loss to a covered **auto** because of and confined to:

- a. Wear and tear;
- b. Freezing; or
- c. Mechanical or electrical breakdown, other than burning of wiring.

This exclusion does not apply to such **loss** following and resulting from other **loss** covered by this policy.

C. LIMIT OF INSURANCE

1. The most **we** will pay for **loss** to any one covered **auto** is the lesser of:
 - a. The actual cash value of damaged or stolen property at the time of the **loss**;
 - b. The cost, at local prices, to repair or replace damaged or stolen property with other property of like kind and quality; or
 - c. The Limit of Insurance shown in the Declarations.
2. **We** will, at **our** option, replace an **auto** scheduled in the Declarations with a new one of equal value or pay **you your** original purchase price if:
 - a. Such **auto** is a **private passenger auto**;
 - b. **You** purchased it new;
 - c. **We** determine the **loss** cannot be repaired; and
 - d. The **loss** occurs within 90 days of the purchase date.

3. If a **loss** to an **auto** scheduled in the Declarations can be paid under either Comprehensive Coverage or Collision Coverage, payment will be made under the coverage that pays the most.

4. Coinsurance

If a scheduled **auto** has been altered, remodeled, converted or modified so that its value is substantially increased over that of a standard **auto** of the same make and model, and such modifications affect the amount of the **loss**, **we** will pay only the proportion that the value of a standard **auto** bears to the value of the scheduled **auto**. This does not apply when an additional premium is charged based on the increased value.

5. Deductible - Hired Auto Physical Damage Coverage

If other insurance is available to **you** or the owner of a covered **auto** (that is a hired **auto**) and such insurance is subject to a deductible greater than the deductible which applies to this coverage, **we** shall pay the difference between the two deductibles.

SECTION IV - INDIVIDUAL NAMED INSURED

If a Named Insured shown in the Declarations is an individual and any **auto** scheduled in the Declarations is a **private passenger auto**, the following extensions of coverage apply:

- A. The Covered Autos Liability Coverage provided for any scheduled **auto** (that is not a **trailer**) also applies to an **auto** (that is not a **trailer**):
 1. Not owned by **you** or anyone living with **you**.
 2. Not furnished or available for regular use to **you** or anyone living with **you**. However, **we** will afford **you** Covered Autos Liability Coverage for **your** use of an **auto** (that is not a **trailer**) owned by or furnished for the regular use of a **family member**.
 3. Not used in a business **you** own or operate selling, servicing, repairing, parking or storing **autos**.
 4. Not used by **you**, a **family member** or the chauffeur or **domestic employee** of either while

working in **your** business or occupation or that of a **family member**, unless the **auto** is a **private passenger auto**.

5. Not used by **you** or a **family member** without a reasonable belief of permission to do so.

We only extend this coverage to and while used by:

1. **You**, if an individual; and
2. **Family members**:
 - a. Who do not own an **auto** (that is not a **trailer**); or
 - b. Who own an **auto** (that is not a **trailer**) if scheduled in the Declarations.

We also extend this coverage to anyone legally responsible for the use of the **auto** (that is not a **trailer**) by the persons described in 1. and 2. immediately above.

- B. The Physical Damage Coverage provided for any scheduled **auto** (that is not a **trailer**) also applies to an **auto** (that is not a **trailer**):
 1. Not owned by **you** or anyone living with **you**.

2. Not furnished or available for regular use to **you** or anyone living with **you**.
3. Not used in a business **you** own or operate selling, servicing, repairing, parking or storing **autos**.
4. Not used by **you**, a **family member** or the chauffeur or **domestic employee** of either while working in **your** business or occupation or that of a **family member**, unless the **auto** is a **private passenger auto**.
5. Not used by **you** or a **family member** without a reasonable belief of permission to do so.

We only extend this coverage to and while used by:

1. **You**, if an individual; and
2. **Family members**:
 - a. Who do not own an **auto** (that is not a **trailer**); or
 - b. Who own an **auto** (that is not a **trailer**) scheduled in the Declarations.

These extensions do not apply when there is other insurance covering **your** interest or the interest of the owner. However, they do apply if **you** are legally liable.

SECTION V - CONDITIONS

A. LOSS CONDITIONS

1. Duties in the Event of Accident, Claim, Suit or Loss

We have no duty to provide coverage under this policy unless there has been full compliance with the following duties:

- a. In the event of **accident**, claim, **suit** or **loss**, an **insured** must give **us** or **our** authorized representative prompt notice of the **accident** or **loss**, including:
 - (1) How, when and where the **accident** or **loss** occurred;
 - (2) The **insured's** name and address; and
 - (3) To the extent possible, the names and addresses of any injured persons and witnesses.
- b. Additionally, the **insured** and any other involved **insured** must:
 - (1) Immediately send **us** copies of any request, demand, order, notice, summons or legal paper received concerning the claim or **suit**.
 - (2) Cooperate with **us** in the investigation or settlement of the claim or defense against the **suit**.
 - (3) Authorize **us** to obtain medical records or other pertinent information.
 - (4) Submit to examination, at **our** expense, by physicians of **our** choice, as often as **we** reasonably require.
 - (5) Assume no obligation, make no payment or incur no expense without **our** consent, except at the **insured's** own cost.
 - (6) Agree to examinations under oath at **our** request and give **us** a signed statement of such answers.
- c. If there is **loss** to a covered **auto** or its **equipment or custom furnishings**, an **insured** must also do the following:

- (1) Promptly notify the police if the covered **auto** or any of its **equipment or custom furnishings** is stolen.

- (2) Take all reasonable steps to protect the covered **auto** from further damage. Also keep a record of expenses for consideration in the settlement of the claim.

- (3) Permit **us** to inspect the covered **auto** and records proving the **loss** before its repair or disposition.

2. Legal Action Against Us

No legal action may be brought against **us** until there has been full compliance with all the terms of this policy. Further, under the Covered Autos Liability Coverage, no legal action may be brought until **we** agree a person entitled to coverage has an obligation to pay or until the amount of that obligation has been determined by judgment after trial. No one has any right under this policy to bring **us** into any action to determine the liability of any person **we** have agreed to protect.

3. Appraisal for Physical Damage Loss

If **you** and **we** disagree on the amount of **loss**, either may demand an appraisal of the **loss**. In this event, each party will select a competent and impartial appraiser. The two appraisers will select a competent and impartial umpire. The appraisers will state separately the actual cash value and amount of **loss**. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

- a. Pay its chosen appraiser; and
- b. Bear the other expenses of the appraisal and umpire equally.

If **we** submit to an appraisal, **we** will still retain **our** right to deny the claim.

4. Loss Payment - Physical Damage Coverage

At **our** option, **we** may:

- a. Pay for, repair or replace damaged or stolen property;
- b. Return stolen property at **our** expense. **We** will pay for any damage that results to the **auto** from the theft; or
- c. Take all or any part of damaged or stolen property at an agreed or appraised value.

If **we** pay for the **loss**, **our** payment will include, where required by law, the applicable sales tax for damaged or stolen property. **We** may adjust the **loss** for an **auto you** lease, hire, rent or borrow with either **you** or the owner of such **auto**, whomever **we** choose.

5. Our Right to Recover Payments

If **we** make a payment under this policy and the person or organization to or for whom payment is made has a right to recover damages from another, **we** will be entitled to that right. That person or organization shall do everything necessary to transfer that right to **us** and do nothing to prejudice it.

6. Motor Carriers

- a. When this policy is amended by an endorsement prescribed in compliance with any law for the regulation of:
 - (1) Common carriers;
 - (2) Contract carriers; or
 - (3) Private carriers
 of passengers or property, all amended policy terms and conditions remain in full force and are binding between **you** and **us**.
- b. If as a result of that endorsement, **we** are obligated to make a payment that **we** would not make except for that endorsement, **you** agree to reimburse **us** for any payment, including payment for defense costs, **we** must make as a result of that endorsement.

B. GENERAL CONDITIONS**1. Policy Term and Territory**

Under this policy, **we** cover **accidents** and **losses** occurring:

- a. During the policy term shown in the Declarations; and
- b. Within the coverage territory.
The coverage territory is:
 - (1) The United States of America;
 - (2) The territories and possessions of the United States of America;
 - (3) Canada; and
 - (4) Anywhere in the world if a covered **auto** that is a **private passenger auto** is leased, hired, rented or borrowed

without a driver for a period of 30 days or less, provided that the **insured's** responsibility to pay damages is determined in a **suit** on the merits in any of the coverage territories described in **b.(1)**, **b.(2)** or **b.(3)** above or in a settlement to which **we** agree.

We also cover **loss** to, or **accidents** involving, a covered **auto** while being transported between any of these places.

2. Other Insurance

- a. For any covered **auto** that is scheduled in the Declarations, this policy provides primary insurance. For any covered **auto** which is not scheduled in the Declarations, the insurance provided by this policy is excess over any other collectible insurance. However, this coverage shall be primary when any covered **auto** (that is a **trailer**) is connected to an **auto** that is scheduled in the Declarations and this coverage shall be excess when any covered **auto** (that is a **trailer**) is connected to an **auto** that is not scheduled in the Declarations.
- b. Regardless of the provisions of Paragraph **a.** above, the Covered Autos Liability Coverage of this policy is primary for any liability assumed under an **insured contract**.
- c. When this policy and any other coverage form or policy covers on the same basis, either excess or primary, **we** will pay only **our** share. **Our** share is the proportion that the Limit of Insurance of **our** policy bears to the total of the limits of all the coverage forms and policies covering on the same basis.

3. Assignment

No interest in this policy may be assigned without **our** written consent. However, if **you** are an individual and **you** die within the policy term, the policy will cover as though named in the Declarations:

- a. **Your** spouse;
- b. **Your** legal representative, but only with respect to his or her legal responsibility for the maintenance or use of a covered **auto**; and
- c. Any person having proper temporary custody of a covered **auto** until a legal representative is appointed

provided **we** are given written notice of **your** death within 60 days of the date of **your** death or by the expiration of the policy term in which **you** die, whichever is greater. This requirement does not apply with regard to **your** spouse.

4. Bankruptcy

Bankruptcy or insolvency of an **insured** or an **insured's** estate will not relieve **us** of any obligation under the terms of this policy.

5. Changes

- a. This policy contains all the agreements between **you** and **us** or any of **our** agents, concerning the insurance afforded. The terms of this policy can be amended or waived only by endorsement issued by **us** and made part of this policy.
- b. The first Named Insured shown in the Declarations is authorized to make changes in the terms of this policy with **our** consent. **We** may adjust **your** policy premium because of changes made to the policy.
- c. **We** may adjust **your** premium during the policy term because of changes in the factors that were used to determine such premium. These factors include but are not limited to:
 - (1) The principal place of garaging a covered **auto**;
 - (2) Coverages, limits of insurance and deductibles;
 - (3) The type, make and model of a covered **auto** and its use; and
 - (4) The operators of a covered **auto**. Premium adjustments will be made at the time of such changes or when **we** become aware of the changes, if later. **We** will use the governing rules and rates in effect on the inception date of the policy term.

6. Concealment, Misrepresentation or Fraud

This policy is void in any case of fraud by **you** at any time as it relates to this policy. It is also void if **you** or any other **insured**, at any time, intentionally conceals or misrepresents a material fact concerning:

- a. This policy;
- b. The covered **auto**;
- c. **Your** interest in the covered **auto**; or
- d. A claim under this policy.

7. Duplication of Coverage

- a. If this policy and any other policy or coverage form provided by **us** or a company affiliated with **us**, provides coverage for the same **accident** or **loss**, **our** maximum limit of insurance under all the policies or coverage forms shall not exceed the highest limit of insurance under any single policy or coverage form applicable to the **accident** or **loss**.
- b. This condition does not apply to any policy or coverage form issued by **us** or a

company affiliated with **us** to specifically provide excess insurance over this policy.

8. Examination of Your Books and Records

We may examine and audit **your** books and records as they relate to this policy at any time during the policy term and up to one year afterward.

9. Inspections

- a. **We** have the right to:
 - (1) Make inspections at any time;
 - (2) Give **you** reports on the conditions **we** find; and
 - (3) Recommend changes.
- b. **We** are not obligated to make any inspections, reports or recommendations and any such actions **we** do undertake relate only to insurability and the premiums to be charged. **We** do not make safety inspections. **We** do not undertake to perform the duty of any person or organization to provide for the health or safety of workers or the public. **We** do not warrant that conditions:
 - (1) Are safe or healthful; or
 - (2) Comply with laws, regulations, codes or standards.
- c. Paragraphs **9.a.** and **9.b.** of this condition apply not only to **us**, but also to any rating, advisory, rate service or similar organization which makes insurance inspections, reports or recommendations.

10. Liberalization

If **we** revise this policy to provide more coverage without additional premium charge, **your** policy will automatically provide the additional coverage as of the day the revision is effective in **your** state.

11. No Benefit to Bailee - Physical Damage Coverage

We will not recognize any assignment or grant any coverage for the benefit of any person or organization holding, storing or transporting property for a fee regardless of any other provision of this policy.

12. Premiums

The first Named Insured shown in the Declarations:

- a. Is responsible for the payment of all premiums; and
- b. Will be the payee for any return premiums **we** pay.

13. Premium Audit

The estimated premium for this policy is based on the exposures **you** told **us** **you** would have when this policy began. **We** will compute the final premium due when **we** determine **your**

actual exposures. The estimated total premium will be credited against the final premium due, and the first Named Insured will be billed for the balance, if any. The due date for the final premium is the date shown as the due date on the bill. If the estimated total premium exceeds the final premium due, a return premium will be paid. Failure to pay any premium, including the

final premium, by the due date shown on the bill will be considered to be non payment of premium.

14. Severability

Except as to the Limit of Insurance, the coverage provided by this policy applies separately to each person against whom claim is made or **suit** is brought.

SECTION VI - DEFINITIONS

A. Accident includes continuous or repeated exposure to the same conditions resulting in **bodily injury** or **property damage**.

B. Auto means:

1. A land motor vehicle, designed for travel on public roads;
2. A **trailer**; or
3. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, **auto** does not include **mobile equipment**.

C. Bodily injury means physical injury, sickness or disease sustained by a person, including resulting death of that person.

D. 1. Covered pollution cost or expense means any cost or expense arising out of:

- a. Any request, demand, order or statutory or regulatory requirement that an **insured** or others test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, or assess the effects of, **pollutants**; or
- b. Any claim or **suit** by or on behalf of a governmental authority for damages because of testing for, monitoring, cleaning up, removing, containing, treating, detoxifying or neutralizing, or in any way responding to, or assessing the effects of, **pollutants**.

2. Covered pollution cost or expense does not include any cost or expense arising out of the actual, alleged or threatened discharge, dispersal, seepage, migration, release or escape of **pollutants**:

- a. That are, or that are contained in any property that is:
 - (1) Being transported or towed by, handled or handled for movement into, onto or from the covered **auto**;
 - (2) Otherwise in the course of transit by or on behalf of an **insured**; or
 - (3) Being stored, disposed of, treated or processed in or upon the covered **auto**;
- b. Before the **pollutants** or any property in which the **pollutants** are contained are

moved from the place where they are accepted by an **insured** for movement into or onto the covered **auto**; or

c. After the **pollutants** or any property in which the **pollutants** are contained are moved from the covered **auto** to the place where they are finally delivered, disposed of or abandoned by an **insured**.

Paragraph **2.a.** above does not apply to fuels, lubricants, fluids, exhaust gases or other similar **pollutants** that are needed for or result from the normal electrical, hydraulic or mechanical functioning of the covered **auto** or its parts, if:

- (1) The **pollutants** escape, seep, migrate or are discharged, dispersed or released directly from an **auto** part designed by its manufacturer to hold, store, receive or dispose of such **pollutants**; and
- (2) The **bodily injury, property damage or covered pollution cost or expense** does not arise out of the operation of any equipment listed in Paragraph **6.b.** or **6.c.** of the definition of **mobile equipment**.

Paragraphs **2.b.** and **2.c.** above do not apply to **accidents** that occur away from premises owned by or rented to an **insured** with respect to **pollutants** not in or upon a covered **auto** if:

- (1) The **pollutants** or any property in which the **pollutants** are contained are upset, overturned or damaged as a result of the maintenance or use of a covered **auto**; and
- (2) The discharge, dispersal, seepage, migration, release or escape of the **pollutants** is caused directly by such upset, overturn or damage.

E. Diminished value means the actual or perceived reduction in market value or resale value of a covered **auto** as the result of a covered **loss**.

F. Domestic employee means a person engaged in household or domestic work performed principally in connection with a residence premises.

G. Employee includes a **leased worker**. **Employee** does not include a **temporary worker**.

H. Equipment or custom furnishings means:

1. An apparatus or device (that is not a **trailer**):
 - a. Permanently attached to or installed in or upon a covered **auto**; or
 - b. Designed for use with, but detached from, a covered **auto**.
2. Keys and key fobs designed for a covered **auto**.
3. Custom paint, decals, wraps or other interior or exterior modifications to a covered **auto**.

Equipment or custom furnishings does not include:

1. Anything attached to real estate; or
2. Removable child seats.

I. Executive officer means a person holding any of the officer positions created by **your** charter, constitution, by-laws or any other similar governing document.**J. Family member** means a person who resides with **you** and who is related to **you** by blood, marriage or adoption. **Family member** includes a ward or foster child who resides with **you**.**K. Insured** means any person or organization qualifying as an insured in the Who Is An Insured provision of the applicable coverage.**L. Insured contract** means:

1. A lease of premises;
2. A sidetrack agreement;
3. Any easement or license agreement, except in connection with:
 - a. Construction; or
 - b. Demolition operations on or within 50 feet of a railroad;
4. An indemnification of a municipality as required by ordinance, except in connection with work for a municipality;
5. That part of any other contract or agreement pertaining to **your** business (including an indemnification of a municipality in connection with work performed for a municipality) under which **you** assume the tort liability of another to pay damages because of **bodily injury** or **property damage** to a third person or organization. Tort liability means liability that would be imposed by law in the absence of any contract or agreement; or
6. That part of any contract or agreement entered into, as part of **your** business, pertaining to the rental or lease, by **you** or any of **your employees**, of any **auto**. However, such contract or agreement shall not be considered an **insured contract** to the extent that it obligates **you** or any of **your employees** to pay for **property damage** to any **auto** rented or leased by **you** or any of **your employees**.

An **insured contract** does not include that part of any contract or agreement that:

1. Indemnifies a railroad for **bodily injury** or **property damage** arising out of:
 - a. Construction; or
 - b. Demolition operations on or within 50 feet of any railroad property and affecting any railroad bridge or trestle, tracks, roadbeds, tunnel, underpass or crossing;
2. Pertains to the loan, lease or rental of an **auto** to **you** or any of **your employees**, if the **auto** is loaned, leased or rented with a driver; or
3. Holds a person or organization engaged in the business of transporting property by **auto** for hire harmless for **your** use of a covered **auto** over a route or territory that person or organization is authorized to serve by public authority.

M. Leased worker means a person leased to **you** by a labor leasing firm under an agreement between **you** and the labor leasing firm to perform duties related to the conduct of **your** business. **Leased worker** does not include a **temporary worker**.**N. Loss** means direct and accidental loss or damage.**O. Mobile equipment** means any of the following types of land vehicles, including any attached machinery or equipment:

1. Bulldozers, farm machinery, forklifts and other vehicles designed for use principally off public roads;
2. Vehicles maintained for use solely on or next to premises **you** own or rent;
3. Vehicles that travel on crawler treads;
4. Vehicles, whether self-propelled or not, maintained primarily to provide mobility to permanently mounted:
 - a. Power cranes, shovels, loaders, diggers or drills; or
 - b. Road construction or resurfacing equipment such as graders, scrapers or rollers;
5. Vehicles not described in Paragraph 1., 2., 3. or 4. above that are not self-propelled and are maintained primarily to provide mobility to permanently attached equipment of the following types:
 - a. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting and well-servicing equipment; or
 - b. Cherry pickers and similar devices used to raise or lower workers; or
6. Vehicles not described in Paragraph 1., 2., 3. or 4. above maintained primarily for purposes other than the transportation of persons or cargo. However, self-propelled vehicles with the following types of permanently attached equipment are not **mobile equipment** but will be considered **autos**:
 - a. Equipment designed primarily for:

- (1) Snow removal;
- (2) Road maintenance, but not construction or resurfacing; or
- (3) Street cleaning;
- b. Cherry pickers and similar devices mounted on automobile or truck chassis and used to raise or lower workers; and
- c. Air compressors, pumps and generators, including spraying, welding, building cleaning, geophysical exploration, lighting or well-servicing equipment.

However, **mobile equipment** does not include land vehicles that are subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged. Land vehicles subject to a compulsory or financial responsibility law or other motor vehicle insurance law are considered **autos**.

- P. **Pollutants** means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes materials to be recycled, reconditioned or reclaimed.
- Q. **Private passenger auto** means:
 - 1. A passenger or station wagon type **auto** with four or more wheels;
 - 2. A pickup or van type **auto** with a gross weight of 15,000 pounds or less which is not used in the business of carrying passengers for hire; or
 - 3. A motorhome.
- R. **Property damage** means damage to or destruction of tangible property including resulting loss of use of that property.
- S. **Suit** means a civil proceeding in which:
 - 1. Damages because of **bodily injury** or **property damage**; or

- 2. A **covered pollution cost or expense** to which this insurance applies, are alleged.

Suit includes:

- 1. An arbitration proceeding in which such damages or **covered pollution costs or expenses** are claimed and to which the **insured** must submit or does submit with **our** consent; or
- 2. Any other alternative dispute resolution proceeding in which such damages or **covered pollution costs or expenses** are claimed and to which the **insured** submits with **our** consent.
- T. **Temporary worker** means a person who is furnished to **you** to substitute for a permanent **employee** on leave or to meet seasonal or short-term workload conditions.
- U. **Trailer** means a vehicle which is designed:
 - 1. For travel on public roads; and
 - 2. To be connected to and towed by a power unit.**Trailer** does not include non-motorized farm machinery or farm wagons. A **trailer** is not **equipment** or **custom furnishings**.
- V. **Volunteer worker** means a person who is not **your employee**, and who donates his or her work and acts at the direction of and within the scope of duties determined by **you**, and is not paid a fee, salary or other compensation by **you** or anyone else for their work performed for **you**.
- W. **We, us** or **our** means the Company providing this insurance.
- X. **You** or **your** means the Named Insured shown in the Declarations and if an individual, **your** spouse who resides in the same household.

59495 (8-11)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**CANCELLATION OR NONRENEWAL
DESIGNATED PERSON(S) OR ORGANIZATION(S)
OTHER THAN THE NAMED INSURED**

It is agreed:

This policy is subject to the following condition:

If this policy is canceled or nonrenewed, the designated person(s) or organization(s) shown in the SCHEDULE below shall be notified at least:

1. 10 days prior to the effective date of cancellation if we cancel for nonpayment of premium; or
 2. The number of days shown in the SCHEDULE prior to the effective date if we cancel for any other reason.
- If the law of the state in which notice is mailed to requires a longer notice period, we will comply with those requirements.

SCHEDULE	
Number of Days Notice <u>030</u>	
Name Of Designated Person(s) Or Organization(s) SUPERIOR FACILITY SERVICE GROUP INC	Mailing Address 1114 HIGHWAY 96 STE C-1 #357 KATHLEEN, GA 31057

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement.)

All other policy terms and conditions apply.

58504 (1-15)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DESIGNATED INSURED FOR COVERED AUTOS LIABILITY COVERAGE - BLANKET COVERAGE

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION II - COVERED AUTOS LIABILITY COVERAGE is amended. The following provision is added. Any person or organization is an **insured** for Covered Autos Liability Coverage, but only to the extent that

person or organization qualifies as an **insured** under **SECTION II - COVERED AUTOS LIABILITY COVERAGE, A. COVERAGE, 1. Who Is An Insured.**

All other policy terms and conditions apply.

58504 (1-15)

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58583 (1-15)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

WAIVER OF OUR RIGHT TO RECOVER PAYMENTS (WAIVER OF SUBROGATION) - BLANKET

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION V CONDITIONS, A. LOSS CONDITIONS is amended. **5. Our Right to Recover Payments** is deleted and replaced by the following condition.

5. Our Right to Recover Payments

If **we** make a payment under this policy and the person to or for whom payment is made has a right to recover damages from another, **we** will be entitled to that right. That person shall do everything necessary to transfer that right to **us** and do nothing to prejudice it.

However, **we** waive **our** right to recover payments made for **bodily injury** or **property damage**:

- a.** Covered by the policy; and
- b.** Arising out of the operation of **autos** covered by the policy, in accordance with the terms and conditions of a written contract between **you** and such person or entity

only if such rights have been waived by the written contract prior to the **accident** or **loss** which caused the **bodily injury** or **property damage**.

All other policy terms and conditions apply.

58583 (1-15)

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58650 (1-17)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DRIVE OTHER CAR COVERAGE – BROADENED COVERAGE FOR NAMED INDIVIDUALS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SCHEDULE

Name(s) of Individual(s): TIM SLADE
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

- A.** This endorsement changes only those coverages for which a premium is shown in the Declarations under Drive Other Car Coverage – Broadened Coverage For Named Individuals.
- B. Changes In Covered Autos Liability Coverage**
- 1.** Any **auto you** do not own is a covered **auto** while being used by any individual named in the Schedule or any **family member** of such individual except:
 - a.** Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - b.** Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
 - 2.** The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual while using a covered **auto** described in Paragraph **B.1.** of this endorsement.
- C. Changes In Auto Medical Payments And Uninsured And Underinsured Motorists Coverages**
- The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual are **insureds** while **occupying** or while a pedestrian when being struck by any **auto you** don't own except any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
- D. Changes In Personal Injury Protection Coverage**
- An individual named in the Schedule of this endorsement shall be considered a Named Insured for the Personal Injury Protection Coverage as shown in the Declarations.
- E. Changes In Physical Damage Coverage**
- Any **auto you** don't own is a covered **auto** while in the care, custody or control of any individual named in the Schedule or any **family member** of such individual except:
- a.** Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - b.** Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
- F.** The coverage afforded above shall be excess of any other available or collectible coverage.
- G. DEFINITIONS**
- SECTION VI – DEFINITIONS** is amended.
- Definition **J. Family member** is deleted and replaced by the following definition for the purposes of this endorsement only.
- J. Family member** means an individual who resides with and who is related to the individual named in the Schedule by blood, marriage or adoption. **Family member** includes a ward or foster child who resides with the individual named in the Schedule.

All other policy terms and conditions apply.

58650 (1-17)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DRIVE OTHER CAR COVERAGE – BROADENED COVERAGE FOR NAMED INDIVIDUALS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SCHEDULE

Name(s) of Individual(s): DEBBIE SLADE
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

- A.** This endorsement changes only those coverages for which a premium is shown in the Declarations under Drive Other Car Coverage – Broadened Coverage For Named Individuals.
- B. Changes In Covered Autos Liability Coverage**
- Any **auto you** do not own is a covered **auto** while being used by any individual named in the Schedule or any **family member** of such individual except:
 - Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
 - The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual while using a covered **auto** described in Paragraph **B.1.** of this endorsement.
- C. Changes In Auto Medical Payments And Uninsured And Underinsured Motorists Coverages**
- The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual are **insureds** while **occupying** or while a pedestrian when being struck by any **auto you** don't own except any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
- D. Changes In Personal Injury Protection Coverage**
- An individual named in the Schedule of this endorsement shall be considered a Named Insured for the Personal Injury Protection Coverage as shown in the Declarations.
- E. Changes In Physical Damage Coverage**
- Any **auto you** don't own is a covered **auto** while in the care, custody or control of any individual named in the Schedule or any **family member** of such individual except:
 - Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
- F.** The coverage afforded above shall be excess of any other available or collectible coverage.
- G. DEFINITIONS**
- SECTION VI – DEFINITIONS** is amended.
- Definition **J. Family member** is deleted and replaced by the following definition for the purposes of this endorsement only.
- J. Family member** means an individual who resides with and who is related to the individual named in the Schedule by blood, marriage or adoption. **Family member** includes a ward or foster child who resides with the individual named in the Schedule.

All other policy terms and conditions apply.

58650 (1-17)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DRIVE OTHER CAR COVERAGE – BROADENED COVERAGE FOR NAMED INDIVIDUALS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SCHEDULE

Name(s) of Individual(s): CHRISTOPHER SLADE
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

- A.** This endorsement changes only those coverages for which a premium is shown in the Declarations under Drive Other Car Coverage – Broadened Coverage For Named Individuals.
- B. Changes In Covered Autos Liability Coverage**
- 1.** Any **auto you** do not own is a covered **auto** while being used by any individual named in the Schedule or any **family member** of such individual except:
 - a.** Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - b.** Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
 - 2.** The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual while using a covered **auto** described in Paragraph **B.1.** of this endorsement.
- C. Changes In Auto Medical Payments And Uninsured And Underinsured Motorists Coverages**
- The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual are **insureds** while **occupying** or while a pedestrian when being struck by any **auto you** don't own except any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
- D. Changes In Personal Injury Protection Coverage**
- An individual named in the Schedule of this endorsement shall be considered a Named Insured for the Personal Injury Protection Coverage as shown in the Declarations.
- E. Changes In Physical Damage Coverage**
- Any **auto you** don't own is a covered **auto** while in the care, custody or control of any individual named in the Schedule or any **family member** of such individual except:
- a.** Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - b.** Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
- F.** The coverage afforded above shall be excess of any other available or collectible coverage.
- G. DEFINITIONS**
- SECTION VI – DEFINITIONS** is amended.
- Definition **J. Family member** is deleted and replaced by the following definition for the purposes of this endorsement only.
- J. Family member** means an individual who resides with and who is related to the individual named in the Schedule by blood, marriage or adoption. **Family member** includes a ward or foster child who resides with the individual named in the Schedule.

All other policy terms and conditions apply.

58650 (1-17)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

DRIVE OTHER CAR COVERAGE – BROADENED COVERAGE FOR NAMED INDIVIDUALS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SCHEDULE

Name(s) of Individual(s):

JADE SLADE

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.

- A.** This endorsement changes only those coverages for which a premium is shown in the Declarations under Drive Other Car Coverage – Broadened Coverage For Named Individuals.
- B. Changes In Covered Autos Liability Coverage**
- 1.** Any **auto you** do not own is a covered **auto** while being used by any individual named in the Schedule or any **family member** of such individual except:
 - a.** Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - b.** Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
 - 2.** The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual while using a covered **auto** described in Paragraph **B.1.** of this endorsement.
- C. Changes In Auto Medical Payments And Uninsured And Underinsured Motorists Coverages**
- The following is added to **Who Is An Insured**: Any individual named in the Schedule and any **family member** of such individual are **insureds** while **occupying** or while a pedestrian when being struck by any **auto you** don't own except any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
- D. Changes In Personal Injury Protection Coverage**
- An individual named in the Schedule of this endorsement shall be considered a Named Insured for the Personal Injury Protection Coverage as shown in the Declarations.
- E. Changes In Physical Damage Coverage**
- Any **auto you** don't own is a covered **auto** while in the care, custody or control of any individual named in the Schedule or any **family member** of such individual except:
- a.** Any **auto** owned by the individual named in the Schedule or any **family member** of such individual.
 - b.** Any **auto** used by the individual named in the Schedule or any **family member** of such individual, while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering, or testing **autos** unless that business is **yours**.
- F.** The coverage afforded above shall be excess of any other available or collectible coverage.
- G. DEFINITIONS**
- SECTION VI – DEFINITIONS** is amended.
- Definition **J. Family member** is deleted and replaced by the following definition for the purposes of this endorsement only.
- J. Family member** means an individual who resides with and who is related to the individual named in the Schedule by blood, marriage or adoption. **Family member** includes a ward or foster child who resides with the individual named in the Schedule.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

NUCLEAR ENERGY LIABILITY EXCLUSION ENDORSEMENT (Broad Form)

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

1. The insurance does not apply:
 - a. Under Covered Autos Liability Coverage, to **bodily injury** or **property damage**:
 - (1) With respect to which an **insured** under the policy is also an insured under a nuclear energy liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Atomic Energy Liability Underwriters, Nuclear Insurance Association of Canada or any of their successors, or would be an insured under any such policy but for its termination upon exhaustion of its limit of liability; or
 - (2) Resulting from the **hazardous properties of nuclear material** and with respect to which:
 - (a) Any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereof; or
 - (b) The **insured** is, or had this policy not been issued would be, entitled to indemnity from the United States of America, or any agency thereof, under any agreement entered into by the United States of America, or any agency thereof, with any person or organization.
 - b. Under any Medical Payments coverage, to expenses incurred with respect to **bodily injury** resulting from the **hazardous properties of nuclear material** and arising out of the operation of a **nuclear facility** by any person or organization.
 - c. Under Covered Autos Liability Coverage, to **bodily injury** or **property damage** resulting from **hazardous properties of nuclear material**, if:
 - (1) The **nuclear material**:
 - (a) Is at any **nuclear facility** owned by, or operated by or on behalf of, an **insured**; or
 - (b) Has been discharged or dispersed therefrom;
 - (2) The **nuclear material** is contained in **spent fuel** or **waste** at any time possessed, handled, used, processed, stored, transported or disposed of, by or on behalf of an **insured**; or
 - (3) The **bodily injury** or **property damage** arises out of the furnishing by an **insured** of services, materials, parts or equipment in connection with the planning, construction, maintenance, operation or use of any **nuclear facility**, but if such facility is located within the United States of America, its territories or possessions or Canada, this exclusion (3) applies only to **property damage** to such **nuclear facility** and any property thereat.
2. As used in this endorsement:

Hazardous properties includes radioactive, toxic or explosive properties.

Nuclear material means **source material**, **special nuclear material** or **by-product material**.

Source material, **special nuclear material**, and **by-product material** have the meanings given them in the Atomic Energy Act of 1954 or in any law amendatory thereof.

Spent fuel means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a **nuclear reactor**.

Waste means any waste material:

- (a) Containing **by-product material** other than the tailings or wastes produced by the extraction or concentration of uranium or thorium from any ore processed primarily for its **source material** content; and
- (b) Resulting from the operation by any person or organization of any **nuclear facility** included under paragraphs (a) and (b) of the definition of **nuclear facility**.

Nuclear facility means:

- (a) Any nuclear reactor;
- (b) Any equipment or device designed or used for:
 - (1) Separating the isotopes of uranium or plutonium;
 - (2) Processing or utilizing **spent fuel**; or
 - (3) Handling, processing or packaging **waste**;
- (c) Any equipment or device used for the processing, fabricating or alloying of **special nuclear material** if at any time the total amount of such material in the custody of the **insured** at the

premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium 233 or any combination thereof, or more than 250 grams of uranium 235;

- (d) Any structure, basin, excavation, premises or place prepared or used for the storage or disposal of **waste**

and includes the site on which any of the foregoing is located, all operations conducted on such site and all premises used for such operations.

Nuclear reactor means any apparatus designed or used to sustain nuclear fission in a self-supporting chain reaction or to contain a critical mass of fissionable material.

Property damage includes all forms of radioactive contamination of property.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA UNINSURED MOTORIST COVERAGE - NON-STACKED

For a covered **auto** licensed or principally garaged in Florida, this endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

With respect to coverage provided by this endorsement, the provisions of the policy apply unless modified by the endorsement.

A. COVERAGE

1. We will pay all sums the **insured** is legally entitled to recover as compensatory damages from the owner or driver of an **uninsured motor vehicle**. The damages must result from **bodily injury** sustained by the **insured** caused by an **accident**. The owner's or driver's liability for these damages must result from the ownership, maintenance or use of the **uninsured motor vehicle**. This includes loss of consortium any person is legally entitled to recover because of:
 - a. **Bodily injury** sustained by the **insured**; and
 - b. Caused by an **accident**.
2. With respect to damages resulting from an **accident** with a vehicle described in Paragraph a.(2) of the definition of uninsured motor vehicle, we will pay under this coverage only if Paragraph a. or b. below applies:
 - a. The limit of any applicable liability bonds or policies has been exhausted by payment of judgments or settlements; or
 - b. A tentative settlement has been made between an **insured** and the insurer of the underinsured motor vehicle and **we**:
 - (1) Have been given prompt written notice of such tentative settlement; and
 - (2) Advance payment to the **insured** in an amount equal to the tentative settlement within 30 days after receipt of notification.
3. Any judgment for damages arising out of a **suit** brought without **our** written consent is not binding on **us**.

B. WHO IS AN INSURED

If the Named Insured is designated in the Declarations as:

1. An individual, then the following are **insureds**:
 - a. The Named Insured and any **family members**.
 - b. Anyone else **occupying**:
 - (1) A covered **auto**; or
 - (2) A temporary substitute for a covered **auto**. The covered **auto** must be out of service because of its breakdown, repair, servicing, **loss** or destruction.
 - c. Anyone for damages he or she is entitled to recover because of **bodily injury** sustained by another **insured**.
2. A partnership, limited liability company, corporation or any other form of organization, then the following are **insureds**:
 - a. Anyone **occupying**:
 - (1) A covered **auto** is an **insured**; or
 - (2) A temporary substitute for a covered **auto** is an **insured**. The covered **auto** must be out of service because of its breakdown, repair, servicing, **loss** or destruction.
 - b. Anyone for damages he or she is entitled to recover because of **bodily injury** sustained by another **insured**.

C. EXCLUSIONS

This insurance does not apply to:

1. Any claim settled or judgment reached without **our** consent, unless **our** right to recover payment has not been prejudiced by such settlement or judgment. However, this exclusion does not apply to a settlement made with the insurer of a vehicle described in Paragraph b. of the definition of an **uninsured motor vehicle**.

2. The direct or indirect benefit of any insurer or self-insurer under any workers compensation, disability benefits or similar law.
3. Anyone using a vehicle without a reasonable belief that the person is entitled to do so.
4. **Bodily injury** sustained by:
 - a. An individual Named Insured while **occupying** or when struck by a vehicle owned by that individual Named Insured that is not a covered **auto** for Uninsured Motorist Coverage under this policy;
 - b. Any **family member** while **occupying** or when struck by any vehicle owned by that **family member** that is not a covered **auto** for Uninsured Motorist Coverage under this policy;
 - c. Any **family member** while **occupying** or when struck by any vehicle owned by the Named Insured that is insured for Uninsured Motorist Coverage on a primary basis under any other coverage form or policy; or
 - d. Any **insured** with respect to damages for pain, suffering, mental anguish or inconvenience unless the **bodily injury** consists in whole or in part of:
 - (1) Significant and permanent loss of an important bodily function;
 - (2) Permanent injury within a reasonable degree of medical probability, other than scarring or disfigurement;
 - (3) Significant and permanent scarring or disfigurement; or
 - (4) Death.
5. Punitive or exemplary damages.
6. **Bodily injury** arising directly or indirectly out of:
 - a. War, including undeclared or civil war;
 - b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.
7. **Bodily injury** sustained by any **insured** while **occupying** or when struck by any vehicle that is a covered **auto** for Uninsured Motorist Coverage - Non-stacked while such **auto** is:
 - a. Enrolled in an electronic or written **auto** sharing program agreement; and
 - b. Being used in connection with such **auto** sharing program.

If **you** are an individual, this exclusion does not apply to **you** or any **family member** while using such **auto**.

8. **Bodily injury** sustained by any **insured** while **occupying** or when struck by any vehicle that is a covered **auto** for Uninsured Motorist Coverage - Non-stacked while such **auto** is being used as a public mode of transportation of people. This exclusion does not apply to car pooling on a share the expense basis.

D. LIMIT OF INSURANCE

1. Regardless of the number of covered **autos**, **insureds**, premiums paid, claims made or **suits** brought, persons injured or vehicles involved in the **accident**, the limit of insurance is as follows:
 - a. The most **we** will pay for all damages resulting from **bodily injury** to any one person caused by any one **accident**, including all damages claimed by any person or organization for care, loss of services or death resulting from the **bodily injury**, is the limit of Uninsured Motorist - Non-stacked shown in the Declarations for each person.
 - b. Subject to the limit for each person, the most **we** will pay for all damages resulting from **bodily injury** caused by any one **accident** is the limit of Uninsured Motorist - Non-stacked shown in the Declarations for each **accident**.
2. No one will be entitled to receive duplicate payments for the same elements of **loss** under this coverage and any Liability Coverage form, No-fault Coverage endorsement, Medical Payments Coverage endorsement, or Uninsured Motorist Coverage endorsement attached to this policy.
3. **We** will not make a duplicate payment under this coverage for any element of **loss** for which payment has been made by or for anyone who is legally responsible.
4. **We** will not pay for any element of **loss** if a person is entitled to receive payment for the same element of **loss** under any workers compensation, disability benefits or similar law.

E. CHANGES IN CONDITIONS

SECTION V - CONDITIONS is amended for the purposes of this endorsement only.

1. The **Other Insurance** Provision in the policy is deleted and replaced by the following:
Other Insurance
 - a. If there is other applicable insurance available under one or more coverage forms, policies or provisions of coverage, any recovery for damages sustained by an individual Named Insured or any **family member**:
 - (1) While **occupying** a vehicle owned by that Named Insured or any **family member** may equal, but not exceed, the

limit of insurance for Uninsured Motorist Coverage applicable to that vehicle.

- (2) While **occupying** a vehicle not owned by that Named Insured or any **family member** may equal, but not exceed, the sum of:

(a) The limit of insurance for Uninsured Motorist Coverage applicable to the vehicle such Named Insured or any **family member** was **occupying** at the time of the **accident**; and

(b) The highest limit of insurance for Uninsured Motorist Coverage applicable to any one vehicle under any one policy affording coverage to such Named Insured or any **family member**.

- (3) While not **occupying** any vehicle may equal, but not exceed, the highest limit of insurance for Uninsured Motorist Coverage applicable to any one vehicle under any one policy affording coverage to an individual Named Insured or any **family member**.

b. Any insurance **we** provide with respect to a vehicle the Named Insured does not own will be excess over any collectible uninsured motorist insurance providing coverage on a primary basis.

c. If the coverage under this policy is provided:

(1) On a primary basis, **we** will pay only **our** share of the loss that must be paid under insurance providing coverage on a primary basis. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits of liability for coverage on a primary basis.

(2) On an excess basis, **we** will pay only **our** share of the loss that must be paid under insurance providing coverage on an excess basis. **Our** share is the proportion that **our** limit of liability bears to the total of all applicable limits of liability for coverage on an excess basis.

2. The **Duties in the Event of Accident, Claim, Suit or Loss** provision is changed by adding the following:

- a. Promptly notify the police if a hit-and-run driver is involved; and
- b. Promptly send **us** copies of the legal papers if a **suit** is brought.
- c. A person seeking Uninsured Motorist Coverage must also promptly notify **us** in writing by certified or registered mail of a tentative settlement between the **insured** and the insurer of the vehicle described in Paragraph

b. of the definition of an **uninsured motor vehicle** and allow **us** 30 days to advance payment to that **insured** in an amount equal to the tentative settlement to preserve **our** rights against the insurer, owner or operator of such vehicle described in Paragraph b. of the definition of an **uninsured motor vehicle**.

3. The **Our Right to Recover Payments** provision is changed by adding the following:

If **we** make any payment and the **insured** recovers from another party, the **insured** will hold the proceeds in trust for **us** and pay **us** back the amount **we** have paid.

Our rights do not apply under this provision with respect to Uninsured Motorist Coverage if **we**:

- a. Have been given prompt written notice of a tentative settlement between an **insured** and the insurer of a vehicle described in Paragraph b. of the definition of an **uninsured motor vehicle**; and
- b. Fail to advance payment to the **insured** in an amount equal to the tentative settlement within 30 days after receipt of notification.

If **we** advance payment to the **insured** in an amount equal to the tentative settlement within 30 days after receipt of notification:

- a. That payment will be separate from any amount the **insured** is entitled to recover under the provisions of Uninsured Motorist Coverage; and
- b. **We** also have a right to recover the advanced payment.

4. The following condition is added:

a. **Arbitration**

(1) If **we** and an **insured** do not agree:

- (a) Whether that person is legally entitled to recover damages under this endorsement; or
- (b) As to the amount of damages that are recoverable by that person then the matter may be mediated, in accordance with the Mediation provision, if the damages resulting from **bodily injury** are for \$10,000 or less, or arbitrated. However, disputes concerning coverage under this endorsement may not be arbitrated. Both parties must agree to arbitration. In this event, each party will select an arbitrator. The two arbitrators will select a third. If they cannot agree within 30 days, either may request that selection be made by a judge of a court having jurisdiction.

- (2) Each party will pay the expenses it incurs and bear the expenses of the third arbitrator equally.
- (3) Unless both parties agree otherwise, arbitration will take place in the county in which the **insured** lives. Local rules of law as to arbitration procedure and evidence will apply. A decision agreed to by two of the arbitrators will be binding.

b. Florida Arbitration Act

If **we** and an **insured** agree to arbitration, the **Florida Arbitration Act** will not apply.

c. Mediation

- (1) In any claim filed by an **insured** with **us** for:
 - (a) **Bodily injury** in an amount of \$10,000 or less, arising out of the ownership, operation, use or maintenance of a covered **auto**;
 - (b) **Property damage** in any amount, arising out of the ownership, operation, maintenance or use of a covered **auto**; or
 - (c) **Loss** to a covered **auto** or its equipment, in any amount
 either party may make a written demand for mediation of the claim prior to the institution of litigation.
- (2) The costs of mediation must be reasonable. **We** will bear all expenses of conducting the mediation conference unless **you** fail to appear at the conference. If **you** fail to appear at the conference, then **you** shall bear the expenses of a rescheduled mediation conference. If **we** fail to appear at the conference, **we** shall pay **your** actual cash expenses incurred in attending the conference if **our** failure to attend was not due to a good cause acceptable by the department. **We** are deemed to have failed to appear if **our** representative lacks authority to settle the full value of the claim. **We** shall incur an additional fee, paid to the mediator, for a rescheduled conference necessitated by **our** failure to appear at the scheduled conference.
- (3) Only one mediation may be requested for each claim unless all parties agree to further mediation.
- (4) Disclosures and information divulged in the mediation process are not admissible in any subsequent action or proceeding relating to the claim or to the

cause of action giving rise to the claim. A party demanding mediation shall not be entitled to demand or request mediation after a **suit** is filed relating to the same facts already mediated.

F. ADDITIONAL DEFINITIONS

SECTION VI - DEFINITIONS is amended. As used in this endorsement only:

- 1. **Occupying** means in, upon, getting in, on, out or off.
- 2. **a. Uninsured motor vehicle** means a land motor vehicle or **trailer**:
 - (1) For which no liability bond or policy applies at the time of an **accident**;
 - (2) That is an underinsured motor vehicle. An underinsured motor vehicle is a land motor vehicle or **trailer** for which a **bodily injury** liability bond or policy applies at the time of an **accident** but the amount paid under that bond or policy to an **insured** is not enough to pay the full amount the **insured** is legally entitled to recover as damages caused by the **accident**;
 - (3) For which an insuring or bonding company denies coverage or is or becomes insolvent; or
 - (4) For which neither the driver nor owner can be identified. The land motor vehicle or **trailer** must:
 - (a) Hit an individual Named Insured or any **family member**, a covered **auto** or a vehicle such Named Insured or any **family member** is **occupying**; or
 - (b) Cause an **accident** resulting in **bodily injury** to an individual Named Insured or any **family member** without hitting that Named Insured, any **family member**, a covered **auto** or a vehicle such Named Insured or any **family member** is **occupying**.
 If there is no physical contact with the land motor vehicle or **trailer**, the facts of the **accident** must be proved. **We** will only accept competent evidence other than the testimony of a person making claims under this or any similar coverage.
- b. However, uninsured motor vehicle** does not include any vehicle:
 - (1) Owned by a governmental unit or agency;

- (2) Designed for use mainly off public roads while not on public roads; or
- (3) Owned by or furnished or available for the regular use of the Named Insured, or if the Named Insured is an individual, any **family member** unless it is a covered **auto** to which the coverage form's Liability Coverage applies and liability

- coverage is excluded for any person or organization other than the Named Insured, or if the Named Insured is a individual, any **family member**; or
- (4) Located for use as a residence or premises.

All other policy terms and conditions apply.

58428 (8-21)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA - AUTO MEDICAL PAYMENTS COVERAGE

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

A. COVERAGE

1. **We** will pay Auto Medical Payments Coverage to or for any **insured** who accidentally sustains **bodily injury** caused by an **accident**.
 2. Auto Medical Payments Coverage shall consist of:
 - a. (1) Medical Benefits, meaning the following schedule of maximum charges specified in the Florida Motor Vehicle No-Fault Law, section 627.736, Florida Statutes, for **medically necessary** medical, surgical, X-ray, dental and rehabilitative services, including prosthetic devices and **medically necessary** ambulance, hospital and nursing services, if the injured person receives initial services and care within 14 days after the **accident** involving a covered **auto**.
 - (a) For emergency transport and treatment by providers licensed under chapter 401, Florida Statutes, 200 percent of Medicare.
 - (b) For emergency services and care provided by a hospital licensed under chapter 395, Florida Statutes, 75 percent of the hospital's usual and customary charges.
 - (c) For emergency services and care as defined by s. 395.002, Florida Statutes, provided in a facility licensed under chapter 395, Florida Statutes, rendered by a physician or dentist, and related hospital inpatient services rendered by a physician or dentist, the usual and customary charges in the community.
 - (d) For hospital inpatient services, other than emergency services and care, 200 percent of the Medicare Part A prospective payment applicable to the specific hospital providing the inpatient services.
 - (e) For hospital outpatient services, other than emergency services and care, 200 percent of the Medicare Part A Ambulatory Payment Classification for the specific hospital providing the outpatient services.
 - (f) For all other medical services, supplies, and care, 200 percent of the allowable amount under:
 - 1) The participating physicians fee schedule of Medicare Part B, except as provided in 2) and 3) below.
 - 2) Medicare Part B, in the case of services, supplies, and care provided by ambulatory surgical centers and clinical laboratories.
 - 3) The Durable Medical Equipment Prosthetics/Orthotics and Supplies fee schedule of Medicare Part B, in the case of durable medical equipment.However, if such services, supplies, or care is not reimbursable under Medicare Part B, as provided in (f) above, **we** will limit reimbursement to the maximum reimbursable allowance under workers' compensation, as determined under s. 440.13, Florida Statutes, and rules adopted thereunder which are in effect at the time such services, supplies, or care is provided. Services, supplies, or care that is not reimbursable under Medicare or workers' compensation will not be reimbursed by **us**.
- (2) For purposes of the above, the applicable fee schedule or payment limitation under Medicare is the fee schedule or payment limitation in effect on March 1 of the **service year** in which the services, supplies, or care is rendered and

for the area in which such services, supplies, or care is rendered, and the applicable fee schedule or payment limitation applies to services, supplies or care rendered during that **service year**, notwithstanding any subsequent change made to the fee schedule or payment limitation, except that it will not be less than the allowable amount under the applicable schedule of Medicare Part B for 2007 for medical services, supplies, and care subject to Medicare Part B.

We shall use the Medicare coding policies and payment methodologies of the federal Centers for Medicare and Medicaid Services, including applicable modifiers, to determine the appropriate amount of reimbursement for medical services, supplies or care.

However, the Medical Benefits shall provide reimbursement only for such:

- (a) Initial services and care that are lawfully provided, supervised, ordered, or prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, or an advanced practice registered nurse registered under chapter 464, Florida Statutes or that are provided in a hospital or in a facility that owns, or is wholly owned by, a hospital. Initial services and care may also be provided by a person or entity licensed under part III of chapter 401, Florida Statutes, which provides emergency transportation and treatment; and
- (b) Followup services and care referred by the health care provider of the initial services and care, consistent with the underlying medical diagnosis rendered in the initial services and care that are lawfully provided, supervised, ordered or prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, or an advanced practice registered nurse registered under chapter 464 Florida Statutes, or, to the extent permitted

by applicable law and under the supervision of such physician, osteopathic physician, chiropractic physician, or dentist, by a physician assistant licensed under chapter 458 or chapter 459, Florida Statutes, or an advanced practice registered nurse licensed under chapter 464, Florida Statutes. Followup services and care may also be provided by the following persons or entities:

- 1) A hospital or ambulatory surgical center licensed under chapter 395, Florida Statutes.
- 2) An **entity wholly owned** by one or more physicians licensed under chapter 458 or chapter 459, Florida Statutes, chiropractic physicians licensed under chapter 460, Florida Statutes, advanced practice registered nurses registered under chapter 464, Florida Statutes, or dentists licensed under chapter 466, Florida Statutes, or by such practitioners and the spouse, parent, child, or sibling of such practitioners.
- 3) An entity that owns or is wholly owned, directly or indirectly, by a hospital or hospitals.
- 4) A physical therapist licensed under chapter 486, Florida Statutes, based upon a referral by a provider described in (b) immediately above.
- 5) A health care clinic licensed under part X of chapter 400, Florida Statutes, which is accredited by an accrediting organization whose standards incorporate comparable regulations required by this state, or:
 - a) Has a medical director licensed under chapter 458, Florida Statutes, chapter 459, Florida Statutes, or chapter 460, Florida Statutes;
 - b) Has been continuously licensed for more than 3 years or is a publicly traded corporation that issues securities traded on an exchange registered with the

United States Securities and Exchange Commission as a national securities exchange; and

- c) Provides at least four of the following medical specialties:
- i General medicine.
 - ii Radiography.
 - iii Orthopedic medicine.
 - iv Physical medicine.
 - v Physical therapy.
 - vi Physical rehabilitation.
 - vii Prescribing or dispensing outpatient prescription medication.
 - viii Laboratory services.

Medical Benefits do not include massage therapy as defined in s. 480.033, Florida Statutes, or acupuncture as defined in s. 457.102, Florida Statutes, regardless of the person, entity, or licensee providing massage therapy or acupuncture, and a licensed massage therapist or licensed acupuncturist may not be reimbursed for Medical Benefits under this provision.

- b. Reasonable funeral service expenses equal to the lesser of \$5,000 or the remainder of the unused Auto Medical Payments Coverage per person. Reasonable funeral service expenses must be incurred within three years of the **accident** resulting in death and reported to **us** within one year of the funeral. **We** may pay reasonable funeral service expenses to the executor or administrator of the deceased, to any of the deceased's relatives by blood, legal adoption, or marriage, or to any person appearing to **us** to be equitably entitled to such benefits.

B. WHO IS AN INSURED

1. Anyone **occupying** a covered **auto**; and
2. If **you** are an individual and a covered **auto** is a **private passenger auto** to which Auto Medical Payments applies:
 - a. **You**; and
 - b. Any **family member**, who does not own an **auto** (that is not a **trailer**) unless shown in the Declarations when struck by or while **occupying** an **auto** not owned by, furnished or available for regular use by **you** or anyone living with **you**.

C. EXCLUSIONS

Auto Medical Payments Coverage does not apply to:

1. **Bodily injury** expected or intended from the standpoint of the **insured**.
2. **Bodily injury** to an **insured** while working in a business of selling, leasing, servicing, repairing, parking, storing, delivering or testing **autos**, unless that business is **yours**.
3. **Bodily injury** arising out of the use of any covered **auto** as a public mode of transportation of people. This exclusion does not apply to car pooling on a share the expense basis.
4. **Bodily injury** arising out of the use of any covered **auto** while participating in any prearranged racing, prearranged high speed driving, prearranged competitive driving or prearranged demolition event. This exclusion also applies while any covered **auto** is preparing for or practicing for any of the previously mentioned events.
5. **Bodily injury** to any person **occupying** a covered **auto** without a reasonable belief of **your** permission to do so.
6. **Bodily injury** arising directly or indirectly out of:
 - a. War, including undeclared or civil war;
 - b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign or other authority using military personnel or other agents; or
 - c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.
7. Any obligation for which the **insured** or the **insured's** insurer may be held liable under any workers compensation, disability benefits or unemployment compensation law or any similar law.
8. **Bodily injury** to an **insured occupying** or struck by a covered **auto** located for use as a residence or premises.
9. **Bodily injury** to any person injured while committing a felony.
10. **Bodily injury** sustained by any **insured** while **occupying** or when struck by any vehicle that is a covered **auto** while such **auto** is:
 - a. Enrolled in an electronic or written **auto** sharing program agreement; and
 - b. Being used in connection with such **auto** sharing program.
 If **you** are an individual, this exclusion does not apply to **you** or any **family member** while using such **auto**.

D. LIMIT OF INSURANCE

1. The Limit of Insurance shown in the Declarations for each person is the most **we** will pay to

or for any person in one **accident** for medical benefits and reasonable funeral service expenses.

2. Subject to **D.1.** above, the most **we** will pay for reasonable funeral service expenses is \$5,000 per person.
3. The Limit of Insurance is not increased because of the number of:
 - a. **Covered autos;**
 - b. **Insureds;**
 - c. Premiums paid;
 - d. Claims made or **suits** brought;
 - e. Persons injured; or
 - f. Vehicles involved in the **accident**.
4. **We** will not pay any amount for medical or funeral services that duplicate amounts paid or payable by other insurance of any type.
5. If **you**, or a **family member** who does not own an **auto** unless shown in the Declarations, sustain **bodily injury** while not **occupying** an **auto**, the maximum amount of coverage available for such **bodily injury** is the highest single limit of insurance for this coverage applying to any **auto** with respect to which the injured person is an **insured**.

E. OTHER INSURANCE

The coverage afforded by this endorsement shall be excess over benefits paid or payable under the Florida Motor Vehicle No-Fault Law. However, when the injured person is eligible for Personal Injury Protection Benefits, coverage shall only apply to the extent coverage is afforded under the Personal Injury Protection Benefits of this policy and is not payable under the Personal Injury Protection Benefits of this policy due to:

1. The 80% limitation; or
2. The maximum aggregate limitation.

F. FRAUD

Benefits are not due or payable to or on the behalf of an insured person if that person has committed, by a material act or omission, insurance fraud relating to Auto Medical Payments Coverage under this policy, if the fraud is admitted to in a sworn statement by the **insured** or established in a court of competent jurisdiction. Any insurance fraud voids all coverage arising from the claim related to such fraud under the Auto Medical Payments Coverage of the insured person who committed the fraud, irrespective of whether a portion of the insured person's claim may be legitimate, and any benefits paid before the discovery of the fraud is recoverable by **us** in its entirety from the person who committed insurance fraud. The prevailing party is entitled to its

costs and attorney fees in any action in which it prevails in **our** action to enforce **our** right of recovery under this paragraph.

If **we** have a reasonable belief that a fraudulent insurance act, for the purposes of coverage under this coverage form, has been committed, **we** shall notify the claimant, in writing, within 30 days after submission of the claim that the claim is being investigated for suspected fraud. Beginning at the end of the initial 30-day period, **we** have an additional 60 days to conduct fraud investigation. No later than 90 days after the submission of the claim, **we** must deny the claim or pay the claim with simple interest. Interest shall be assessed from the date the claim was submitted until the day the claim is paid. All claims denied for suspected fraudulent insurance acts shall be reported to the Division of Investigative and Forensic Services.

- G. The following provisions apply in addition to those contained in **SECTION V – CONDITIONS, A. LOSS CONDITIONS, 1. Duties in the Event of Accident, Claim, Suit or Loss** of the policy.

MEDICAL REPORTS; PROOF OF CLAIM; REHABILITATION NOTICE

As soon as practicable, the injured person or someone on his or her behalf shall send **us** written proof of claim, under oath if required. This must include full details of the **bodily injury**, treatment, and rehabilitation received and considered. It must also include such other information as may help **us** determine the amount **we** must pay. At **our** request the injured person or someone acting on the behalf of the injured person must authorize **us** to obtain medical and other records which pertain to the **bodily injury**. The injured person must, at **our** expense, submit to mental or physical examinations by doctors **we** select as often as **we** may reasonably require. An injured person's refusal to submit to or failure to appear at two examinations raises a rebuttable presumption that the refusal or failure was unreasonable. If an injured person unreasonably refuses to submit to or fails to appear at an examination, **we** are no longer liable for subsequent Medical Benefits.

EXAMINATION UNDER OATH

An injured person seeking benefits under Auto Medical Payments Coverage must comply with the terms of this policy, which include, but are not limited to, submitting to an examination under oath. The scope of questioning during the examination is limited to relevant information or information that could reasonably be expected to lead to relevant information. Compliance with the examination under oath requirement is a condition precedent to receiving benefits.

H. SECTION VI – DEFINITIONS is amended.

The following definitions are added for the purposes of this endorsement only.

- 1. Entity wholly owned** means a proprietorship, group practice, partnership, or corporation that provides health care services rendered by licensed health care practitioners and in which licensed health care practitioners are the business owners of all aspects of the business entity, including, but not limited to, being reflected as the business owners on the title or lease of the physical facility, filing taxes as the business owners, being account holders on the entity's bank account, being listed as the principals on all incorporation documents required by this state, and having ultimate authority over all personnel and compensation decisions relating to the entity. However, this definition does not apply to an entity that is wholly owned, directly or indirectly, by a hospital licensed under chapter 395, Florida Statutes.
- 2. Medically necessary** means a medical service or supply that a prudent physician would provide for the purpose of preventing, diagnosing or treating an illness, injury, disease or symptom in a manner that is:
 - a.** In accordance with generally accepted standards of medical practice;
 - b.** Clinically appropriate in terms of type, frequency, extent, site and duration; and
 - c.** Not primarily for the convenience of the patient, physician or other health care provider.
- 3. Occupying** means being in or on an **auto** as a passenger or operator, or being engaged in the immediate acts of entering, boarding or alighting from an **auto**.
- 4. Service year** means the period from March 1 through the end of February of the following year.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA - PERSONAL INJURY PROTECTION

For a covered **auto** licensed or principally garaged in Florida, this endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

With respect to coverage provided by this endorsement, the provisions of the policy apply unless modified by the endorsement.

We agree with the **named insured**, subject to all the provisions of this endorsement and to all of the provisions of the policy except as modified herein, as follows that:

A. COVERAGE

We will pay Personal Injury Protection benefits in accordance with the Florida Motor Vehicle No-fault Law to or for an **insured** who sustains **bodily injury** in an **accident** arising out of the ownership, maintenance or use of a **motor vehicle**. Personal Injury Protection benefits consist of the following:

1. Medical Benefits

- a. Medical Benefits, meaning 80% of the following schedule of maximum charges specified in the Florida Motor Vehicle No-Fault Law, section 627.736, Florida Statutes, for **medically necessary** medical, surgical, X-ray, dental and rehabilitative services, including prosthetic devices and **medically necessary** ambulance, hospital and nursing services, if the injured person receives initial services and care within 14 days after the **motor vehicle** accident:
 - (1) For emergency transport and treatment by providers licensed under chapter 401, Florida Statutes, 200 percent of Medicare.
 - (2) For emergency services and care provided by a hospital licensed under chapter 395, Florida Statutes, 75 percent of the hospital's usual and customary charges.
 - (3) For emergency services and care as defined by s. 395.002, Florida Statutes, provided in a facility licensed under chapter 395, Florida Statutes, rendered by a physician or dentist, and related hospital inpatient services rendered by a physician or dentist, the

usual and customary charges in the community.

- (4) For hospital inpatient services, other than emergency services and care, 200 percent of the Medicare Part A prospective payment applicable to the specific hospital providing the inpatient services.
- (5) For hospital outpatient services, other than emergency services and care, 200 percent of the Medicare Part A Ambulatory Payment Classification for the specific hospital providing the outpatient services.
- (6) For all other medical services, supplies, and care, 200 percent of the allowable amount under:
 - (a) The participating physicians fee schedule of Medicare Part B except as provided in (b) and (c) below.
 - (b) Medicare Part B, in the case of services, supplies and care provided by ambulatory surgical centers and clinical laboratories.
 - (c) The Durable Medical Equipment Prosthetics/Orthotics and Supplies fee schedule of Medicare Part B, in the case of durable medical equipment.

However, if such services, supplies, or care is not reimbursable under Medicare Part B, as provided in (6) above, **we** will limit reimbursement to 80% of the maximum reimbursable allowance under workers compensation, as determined under s. 440.13, Florida Statutes, and

rules adopted thereunder which are in effect at the time such services, supplies, or care is provided. Services, supplies, or care that is not reimbursable under Medicare or workers compensation will not be reimbursed by **us**.

- b.** For purposes of the above, the applicable fee schedule or payment limitation under Medicare is the fee schedule or payment limitation in effect on March 1 of the **service year** in which the services, supplies, or care is rendered and for the area in which such services, supplies, or care is rendered, and the applicable fee schedule or payment limitation applies to services, supplies or care rendered during that **service year**, notwithstanding any subsequent change made to the fee schedule or payment limitation, except that it will not be less than the allowable amount under the applicable schedule of Medicare Part B for 2007 for medical services, supplies, and care subject to Medicare Part B.

We shall use the Medicare coding policies and payment methodologies of the federal Centers for Medicare and Medicaid Services, including applicable modifiers, to determine the appropriate amount of reimbursement for medical services, supplies or care.

However, the Medical Benefits shall provide reimbursement only for such:

- (1)** Initial services and care that are lawfully provided, supervised, ordered, or prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, or an advanced practice registered nurse registered under chapter 464, Florida Statutes or that are provided in a hospital or in a facility that owns, or is wholly owned by, a hospital. Initial services and care may also be provided by a person or entity licensed under part III of chapter 401, Florida Statutes, which provides emergency transportation and treatment; and
- (2)** Followup services and care referred by the health care provider of the initial services and care, consistent with the underlying medical diagnosis rendered in the initial services and care that are lawfully provided, supervised, ordered or

prescribed by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a chiropractic physician licensed under chapter 460, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, or an advanced practice registered nurse registered under chapter 464, Florida Statutes, or, to the extent permitted by applicable law and under the supervision of such physician, osteopathic physician, chiropractic physician, or dentist, by a physician assistant licensed under chapter 458 or chapter 459, Florida Statutes, or an advanced practice registered nurse licensed under chapter 464, Florida Statutes. Followup services and care may also be provided by the following persons or entities:

- (a)** A hospital or ambulatory surgical center licensed under chapter 395, Florida Statutes.
- (b)** An **entity wholly owned** by one or more physicians licensed under chapter 458 or chapter 459, Florida Statutes, chiropractic physicians licensed under chapter 460, Florida Statutes, advanced practice registered nurses registered under chapter 464, Florida Statutes, or dentists licensed under chapter 466, Florida Statutes or by such practitioners and the spouse, parent, child, or sibling of such practitioners.
- (c)** An entity that owns or is wholly owned, directly or indirectly, by a hospital or hospitals.
- (d)** A physical therapist licensed under chapter 486, Florida Statutes, based upon a referral by a provider described in **(2)** immediately above.
- (e)** A health care clinic licensed under part X of chapter 400, Florida Statutes, which is accredited by an accrediting organization whose standards incorporate comparable regulations required by this state, or:
 - 1)** Has a medical director licensed under chapter 458, Florida Statutes, chapter 459, Florida Statutes, or chapter 460, Florida Statutes;
 - 2)** Has been continuously licensed for more than 3 years or is a publicly traded corporation that issues securities traded on an exchange registered with the United States

Securities and Exchange Commission as a national securities exchange; and

- 3) Provides at least four of the following medical specialties:
 - a) General medicine.
 - b) Radiography.
 - c) Orthopedic medicine.
 - d) Physical medicine.
 - e) Physical therapy.
 - f) Physical rehabilitation.
 - g) Prescribing or dispensing outpatient prescription medication.
 - h) Laboratory services.

Medical Benefits, do not include massage therapy as defined in s. 480.033, Florida Statutes, or acupuncture as defined in s. 457.102, Florida Statutes, regardless of the person, entity, or licensee providing massage therapy or acupuncture, and a licensed massage therapist or licensed acupuncturist may not be reimbursed for Medical Benefits under this provision.

2. Disability Benefits

a. Replacement Services Expenses

With respect to the period of disability of the injured person, all expenses reasonably incurred in obtaining from others ordinary and necessary services in lieu of those that, but for such injury, the injured person would have performed without income for the benefit of his or her household, subject to the total aggregate limit;

b. Wage Loss

With respect to the period of disability of the injured person, 60% of any loss of income and earning capacity from inability to work proximately caused by the injury sustained by the injured person, subject to the total aggregate limit; and

3. Death Benefits

Death Benefits are in addition to the Medical Benefits, Replacement Services Expenses and Wage Loss provided under this policy. **We** may pay Death Benefits to the executor or administrator of the deceased, to any of the deceased's relatives by blood, legal adoption, or marriage, or to any person appearing to **us** to be equitably entitled to such benefits.

B. WHO IS AN INSURED

1. The **named insured**.
2. If the **named insured** is an individual, any **family member**.

3. Any other person while **occupying** a covered **motor vehicle** with the **named insured's** consent.
4. A **pedestrian** if the **pedestrian** is struck by a covered **motor vehicle**.

C. EXCLUSIONS

We will not pay Personal Injury Protection benefits for **bodily injury**:

1. Sustained by the **named insured** or any **family member** while **occupying** any **motor vehicle** owned by the **named insured** that is not a covered **motor vehicle**;
2. Sustained by any person while operating the covered **motor vehicle** without the **named insured's** expressed or implied consent;
3. Sustained by any person, if such person's conduct contributed to his or her **bodily injury** under any of the following circumstances:
 - a. Causing **bodily injury** to himself or herself intentionally; or
 - b. While committing a felony;
4. To any **pedestrian**, other than the **named insured** or any **family member**, not a legal resident of the state of Florida;
5. To any person, other than the **named insured**, if that person is the **owner** of a **motor vehicle** for which security is required under the Florida Motor Vehicle No-fault Law;
6. To any person, other than the **named insured**, or any **family member**, who is entitled to Personal Injury Protection benefits from the owner of a **motor vehicle** that is not a covered **motor vehicle** under this insurance or from the **owner's** insurer; or
7. To any person who sustains **bodily injury** while **occupying** a **motor vehicle** located for use as a residence or premises.

D. LIMIT OF INSURANCE

1. Regardless of the number of persons insured, policies or bonds applicable, premiums paid, vehicles involved or claims made, the total aggregate limit of Personal Injury Protection benefits, available under the Florida Motor Vehicle No-fault Law from all sources combined, including this policy, for or on behalf of any one person who sustains **bodily injury** as the result of any one **accident**, shall be \$10,000 when it has been determined, by a physician licensed under chapter 458 or chapter 459, Florida Statutes, a dentist licensed under chapter 466, Florida Statutes, a physician assistant licensed under chapter 458 or chapter 459, Florida Statutes, or

an advanced practice registered nurse licensed under chapter 464, Florida Statutes, that the injured person had an **emergency medical condition**. However, Medical Benefits shall be limited to \$2,500 when:

- a. A health care provider, as described in **A. COVERAGE, 1.b.(1)** which provided the initial services and care; or
- b. A health care provider, as described in **A. COVERAGE, 1.b.(2)** which provided the followup services and care

did not determine that the injured person had an **emergency medical condition**.

2. **We** will pay no more than \$5,000 per individual for Death Benefits. Death Benefits are in addition to the Medical and Disability Benefits provided under this policy.
3. Any amount paid under this coverage will be reduced by the amount of benefits an injured person has been paid or is entitled to be paid for the same elements of **loss** under any workers compensation law.
4. If Personal Injury Protection benefits, under the Florida Motor Vehicle No-fault Law, have been received from any insurer for the same elements of loss and expense benefits available under this policy, **we** will not make duplicate payments to or for the benefit of the injured person. The insurer paying the benefits shall be entitled to recover from **us** its pro rata share of the benefits paid and expenses incurred in handling the claim.
5. The deductible amount shown in the Declarations will be deducted from the total amount of expenses and losses listed in Paragraphs **A.1.**, **A.2.** and **A.3.** of this endorsement before the application of any percentage limitation for each **insured** to whom the deductible applies. Such deductible will apply:
 - a. Only to the **named insured**, if designated PIP Deductible (X); or
 - b. Only to the **named insured** and each dependent **family member**, if designated PIP Deductible (Y)
 as shown in the Declarations under Personal Injury Protection.
 The deductible does not apply to the Death Benefit.
6. Any amount paid under this coverage for Medical Benefits shall be limited by the medical fee schedule as provided by this policy.

E. CHANGES IN CONDITIONS

SECTION V - CONDITIONS is amended for the purposes of this endorsement only.

1. **Duties In The Event Of Accident, Claim, Suit Or Loss** is deleted and replaced by the following:
 Compliance with the following duties is a condition precedent to receiving benefits:
 In the event of an **accident**, the **named insured** must give **us** or **our** authorized representative prompt written notice of the **accident**.
 If any injured person or his or her legal representative institutes a legal action to recover damages for **bodily injury** against a third party, a copy of the summons, complaint or other process served in connection with that legal action must be forwarded to **us** as soon as possible by the injured person or his or her legal representative.
 A person seeking personal injury protection benefits must, as soon as possible, give **us** written proof of claim, under oath if required, containing full particulars concerning the injuries and treatment received and/or contemplated, and send **us** any other information that will assist **us** in determining the amount due and payable.
 A person seeking personal injury protection benefits must submit to an examination under oath. The scope of questioning during the examination under oath is limited to relevant information or information that could reasonably be expected to lead to relevant information.
2. **Legal Action Against Us** is deleted and replaced by the following:
Legal Action Against Us
 - a. No legal action may be brought against **us** until there has been full compliance with all terms of this policy. In addition, no legal action may be brought against **us**:
 - (1) Until the claim for benefits is overdue in accordance with Paragraph **F.2.** of this endorsement; and
 - (2) Until **we** are provided with a demand letter in accordance with the Florida Motor Vehicle No-fault Law sent to **us** via U.S. certified or registered mail; and
 - (3) With respect to the overdue claim specified in the demand letter, if, within 30 days of receipt of the demand letter, **we**:
 - (a) Pay the overdue claim; or
 - (b) Agree to pay for future treatment not yet rendered in accordance with the requirements of the Florida Motor Vehicle No-fault Law.
 - b. If legal action is brought against **us**, all claims related to the same health care provider or facility shall be brought in a single

action, unless good cause can be shown why such claims should be brought separately.

3. **Our Right to Recover Payments** is deleted and replaced by the following:

Our Right to Recover Payments

Unless prohibited by the Florida Motor Vehicle No-fault Law, in the event of payment to or for the benefit of any injured person under this coverage:

- a. **We** will be reimbursed for those payments, not including reasonable attorneys' fees and other reasonable expenses, from the proceeds of any settlement or judgment resulting from any right of recovery of the injured person against any person or organization legally responsible for the **bodily injury** from which the payment arises. **We** will also have a lien on those proceeds.
- b. If any person to or for whom **we** pay benefits has rights to recover benefits from another, those rights are transferred to **us**. That person must do everything necessary to secure **our** rights and must do nothing after loss to impair them.
- c. The insurer providing Personal Injury Protection benefits on a private passenger **motor vehicle**, as defined in the Florida Motor Vehicle No-fault Law, shall be entitled to reimbursement to the extent of the payment of Personal Injury Protection benefits from the **owner** or the insurer of the **owner** of a commercial **motor vehicle**, as defined in the Florida Motor Vehicle No-fault Law, if such injured person sustained the injury while **occupying**, or while a **pedestrian** through being struck by, such commercial **motor vehicle**. However, such insurer's right of reimbursement under this Paragraph **c**. does not apply to an **owner** or registrant of a **motor vehicle** used as a taxicab.

4. **Concealment, Misrepresentation or Fraud** is deleted and replaced by the following:
Concealment, Misrepresentation or Fraud
We do not provide coverage under this endorsement for an **insured** if that **insured** has committed, by a material act or omission, insurance fraud relating to personal injury protection coverage under this form, if fraud is admitted to in a sworn statement by the **insured** or if the fraud is established in a court of competent jurisdiction. Any insurance fraud voids all personal injury protection coverage arising from the claim with respect to the **insured** who committed the fraud.

Any benefits paid prior to the discovery of the fraud are recoverable from that **insured**.

5. **Policy Term and Territory** is deleted and replaced by the following:

Policy Term and Territory

The insurance under this section applies only to **accidents** which occur during the policy term:

- a. In the state of Florida;
- b. As respects the **named insured** or any **family member**, while **occupying** the covered **motor vehicle** outside the state of Florida but within the United States of America, its territories or possessions or Canada; and
- c. As respects the **named insured**, while **occupying** a **motor vehicle** of which a **family member** is the **owner** and for which security is maintained under the Florida Motor Vehicle No-Fault Law outside the state of Florida but within the United States of America, its territories or possessions or Canada.

F. ADDITIONAL CONDITIONS

SECTION V - CONDITIONS is amended for the purposes of this endorsement only. The following conditions are added:

1. Mediation

- a. In any claim filed by an **insured** with **us** for:
 - (1) **Bodily injury** in an amount of \$10,000 or less, arising out of the ownership, operation, use or maintenance of a covered **auto**;
 - (2) **Property damage** in any amount, arising out of the ownership, operation, maintenance or use of a covered **auto**;
 - or
 - (3) **Loss** to a covered **auto** or its equipment, in any amount
 either party may make a written demand for mediation of the claim prior to the institution of litigation.
- b. The costs of mediation must be reasonable. **We** will bear all expenses of conducting the mediation conference unless **you** fail to appear at the conference. If **you** fail to appear at the conference, then **you** shall bear the expenses of a rescheduled mediation conference. If **we** fail to appear at the conference, **we** shall pay **your** actual cash expenses incurred in attending the conference if **our** failure to attend was not due to a good cause acceptable by the department. **We** are deemed to have failed to appear if **our** representative lacks authority to settle the full value of the claim.

We shall incur an additional fee, paid to the mediator, for a rescheduled conference necessitated by **our** failure to appear at the scheduled conference.

- c. Only one mediation may be requested for each claim unless all parties agree to further mediation.
- d. Disclosures and information divulged in the mediation process are not admissible in any subsequent action or proceeding related to the claim or to the cause of action giving rise to the claim. A party demanding mediation shall not be entitled to demand or request mediation after a **suit** is filed relating to the same facts already mediated.

2. Payment of Benefits

Personal Injury Protection benefits payable under this policy, whether the full or partial amount, may be overdue if not paid within 30 days after **we** are furnished with written notice of the covered loss and the amount of the covered loss in accordance with the Florida Motor Vehicle No-fault Law.

However, if **we** have a reasonable belief that a fraudulent insurance act has been committed relating to Personal Injury Protection coverage under this policy, **we** will notify the **insured** in writing, within 30 days after the submission of the claim, that the claim is being investigated for suspected fraud. No later than 90 days after the submission of the claim, **we** will either deny or pay the claim, in accordance with the Florida Motor Vehicle No-fault Law.

If **we** pay only a portion of a claim or reject a claim because of an alleged error in the claim, **we**, at the time of the partial payment or rejection, will provide an itemized specification or explanation of benefits because of the specified error. Upon receiving the specification or explanation, the person making the claim, at the person's option and without waiving any other legal remedy for payment, has 15 days to submit a revised claim, which will be considered a timely submission of written notice of a claim.

3. Modification of Policy Coverages

Any Auto Medical Payments Coverage and any Uninsured Motorist Coverage afforded by the policy shall be excess over any Personal Injury Protection benefits paid or payable.

Regardless of whether the full amount of Personal Injury Protection benefits has been exhausted, any Medical Payments Coverage afforded by the policy shall pay the portion of any claim for personal injury protection medical ex-

penses which are otherwise covered but not payable because of the limitation of 80% of medical expense benefits but shall not be payable for the amount of the deductible selected.

4. Medical Reports and Examinations; Payment of Claim Withheld

As soon as practicable, the person making the claim shall submit to mental and physical examinations at **our** expense when and as often as **we** may reasonably require and a copy of the medical report shall be forwarded to such person if requested.

At **our** request, the person making the claim or someone acting on behalf of such person must authorize **us** to obtain medical and other records which pertain to the **bodily injury**.

If the person unreasonably refuses to submit to, or fails to appear at, an examination, **we** will not be liable for subsequent Personal Injury Protection benefits. Such person's refusal to submit to, or failure to appear at, two examinations, raises a rebuttable presumption that such person's refusal or failure was unreasonable.

Whenever a person making a claim as a result of an injury sustained while committing a felony is charged with committing that felony, **we** shall withhold benefits until, at the trial level, the prosecution makes a formal entry on the record that it will not prosecute the case against the person, the charge is dismissed or the person is acquitted.

5. Provisional Premium

In the event of any change in the rules, rates, rating plan, premiums or minimum premiums applicable to the insurance afforded, because of an adverse judicial finding as to the constitutionality of any provisions of the Florida Motor Vehicle No-fault Law providing for the exemption of persons from tort liability, the premium shown in the Declarations for any Liability, Medical Payments and Uninsured Motorist insurance shall be deemed provisional and subject to recomputation. If this policy is a renewal policy, such recomputation shall also include a determination of the amount of any return premium previously credited or refunded to the **named insured** pursuant to the Florida Motor Vehicle No-fault Law with respect to insurance afforded under a previous policy.

If the final premium thus recomputed exceeds the premium shown in the Declarations, the **named insured** shall pay to **us** the excess as well as the amount of any return premium previously credited or refunded.

6. Special Provisions For Rented Or Leased Vehicles

Notwithstanding any provision of this coverage to the contrary, if a person is injured while **occupying**, or through being struck by, a **motor vehicle** rented or leased under a rental or lease agreement which does not specify otherwise in language required by FLA. STAT. SECTION 627.7263(2) in at least 10-point type on the face of the agreement, the Personal Injury Protection benefits available under the Florida Motor Vehicle No-fault Law and afforded under the lessor's policy shall be primary.

7. Insured's Right To Personal Injury Protection Information

- a. In a dispute between **us** and an **insured**, or between **us** and an assignee of the **insured's** Personal Injury Protection benefits, **we** will, upon request, notify such **insured** or assignee that the limits for Personal Injury Protection have been reached. **We** will provide such information within 15 days after the limits for Personal Injury Protection have been reached.
- b. If legal action is commenced, **we** will, upon request, provide an **insured** with a copy of a log of Personal Injury Protection benefits paid by **us** on behalf of the **insured**. **We** will provide such information within 30 days of receipt of the request for the log from the **insured**.

G. ADDITIONAL DEFINITIONS

SECTION VI - DEFINITIONS is amended. As used in this endorsement only:

1. **Emergency medical condition** means a medical condition manifesting itself by acute symptoms of sufficient severity, which may include severe pain, such that the absence of immediate medical attention could reasonably be expected to result in any of the following:
 - a. Serious jeopardy to **insured's** health;
 - b. Serious impairment to bodily functions; or
 - c. Serious dysfunction of any bodily organ part.
2. **Entity wholly owned** means a proprietorship, group practice, partnership, or corporation that provides health care services rendered by licensed health care practitioners and in which licensed health care practitioners are the business owners of all aspects of the business entity, including, but not limited to, being including, but not limited to, being reflected as the business owners on the title or lease of the physical facility, filing taxes as the business owners, being account holders on the entity's bank account, being listed as the principals on all incorporation documents required by this state, and having ultimate authority over all personnel and compensation decisions relating to the entity. However, this definition does not apply to an entity that is wholly owned, directly or indirectly, by a hospital licensed under chapter 395, Florida Statutes.
3. **Medically necessary** refers to a medical service or supply that a prudent physician would provide for the purpose of preventing, diagnosing or treating an illness, injury, disease or symptom in a manner that is:
 - a. In accordance with generally accepted standards of medical practice;
 - b. Clinically appropriate in terms of type, frequency, extent, site and duration; and
 - c. Not primarily for the convenience of the patient, physician or other health care provider.
4. **Motor vehicle** means any self-propelled vehicle with four or more wheels which is of a type both designed and required to be licensed for use on the highways of Florida and any trailer or semi-trailer designed for use with such vehicle. However, **motor vehicle** does not include:
 - a. A mobile home;
 - b. Any **motor vehicle** which is used in mass transit, other than public school transportation, and designed to transport more than five passengers exclusive of the operator of the motor vehicle and which is owned by a municipality, a transit authority or a political subdivision of the state.
5. **Named insured** means the person or organization named in the Declarations of the policy and, if an individual, shall include the spouse if a resident of the same household.
6. **Occupying** means in or upon or entering into or alighting from.
7. **Owner** means a person or organization who holds the legal title to a **motor vehicle** and also includes:
 - a. A debtor having the right to possession, in the event a **motor vehicle** is the subject of a security agreement;
 - b. A lessee having the right to possession, in the event a **motor vehicle** is the subject of a lease with option to purchase and such lease agreement is for a period of six months or more; and
 - c. A lessee having the right to possession, in the event a **motor vehicle** is the subject of a lease without option to purchase, and such lease is for a period of six months or

more, and the lease agreement provides that the lessee shall be responsible for securing insurance.

8. **Pedestrian** means a person while not an occupant of any self-propelled vehicle.

9. **Service year** means the period from March 1 through the end of February of the following year.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

1. Supplementary Payments

SECTION II - COVERED AUTOS LIABILITY COVERAGE, A. COVERAGE, 2. Coverage Extensions is amended.

Paragraphs **(3)** and **(7)** of **a. Supplementary Payments** are deleted and replaced by the following:

- (3)** Up to the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Supplementary Payments for the cost of bail bonds (including bonds for related traffic law violations) required because of an **accident we** cover. **We** will not apply for or furnish such bonds.
- (7)** All reasonable expenses incurred by an **insured** at **our** request, including actual loss of earnings up to the per day additional expenses limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Supplementary Payments.

2. Waiver of Collision Deductible for Collision with Another Auto-Owners Insured

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

Under paragraph 1., **b. Collision Coverage** is deleted and replaced by the following.

We will pay for **loss** to a covered **auto** or its **equipment or custom furnishings** under:

b. Collision Coverage

Caused by:

- (1)** The covered **auto's** collision with another object; or
- (2)** The covered **auto's** overturn.

When a deductible is shown in the Declarations for this coverage, **we** will reduce **our** payment by that amount. The deductible shall not apply when a covered **auto** is in a collision with another **auto**:

(a) **We** insure and which **you** do not own, rent or have in **your** care, custody or control; or

(b) Whose owner or operator has been identified; and

- 1)** Is legally responsible for the entire amount of the damage; and
- 2)** Is covered by a **property damage** liability policy or bond but only if the damage exceeds the deductible amount.

3. Waiver of Deductible for Covered Autos

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

a. Paragraph **1.a. Comprehensive Coverage** is amended. The following provision is added. When more than one covered **auto** is involved in the same **loss**, only one deductible shall apply. If the deductibles differ, **we** shall only apply the highest deductible.

b. Paragraph **1.b. Collision Coverage** is amended. The following provisions are added. When more than one covered **auto** is involved in the same **loss**, only one deductible shall apply. If the deductibles differ, **we** shall only apply the highest deductible.

When provision **2. Waiver of Collision Deductible For Collision With Another Auto-Owners Insured** of this endorsement also applies to the same **loss**, the deductible shall be further reduced to no deductible.

For purposes of this provision only, an **auto** and attached **trailer** shall be considered two covered **autos**.

4. Non-Owned Trailer Physical Damage

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

Under **3. Coverage Extensions**, paragraph **a. Trailers** is deleted and replaced by the following.

a. Trailers

The Comprehensive Coverage and Collision Coverage provided to a covered **auto** extend to certain **trailers you** do not own. The **trailer** must:

- (1) Be designed for use with the covered **auto**;
- (2) Be used with the covered **auto**; and
- (3) Be other than a **trailer** of the home, office, store, display, or passenger type.

Our limit of insurance shall not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Non-Owned Trailer Physical Damage in any one **loss**. No deductible applies to this coverage extension.

5. Personal Property

SECTION III - PHYSICAL DAMAGE COVERAGE,

A. COVERAGE is amended.

Under **3. Coverage Extensions**, paragraph **c. Personal Property** is deleted and replaced by the following.

c. Personal Property

The Comprehensive Coverage and the Collision Coverage provided to a covered **auto** will extend to **loss** to personal property contained in or on such **auto** as follows:

- (1) Comprehensive Coverage because of:

- (a) Fire;
- (b) Lightning; or
- (c) Theft or attempted theft if there are visible signs of someone breaking into such **auto** or the entire **auto** is stolen; or

- (2) Collision Coverage.

The personal property must be owned by **you**, a **family member** or **your employee**.

This coverage extension does not apply to:

- (a) Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals.
- (b) Tapes, discs, or other similar media designed for use with equipment described in (a) immediately above.
- (c) Any accessories used with the media or equipment described in (a) or (b) immediately above.
- (d) Money or jewelry.
- (e) Any device designed or used to:
 - 1) Detect speed-measuring equipment such as radar or laser detectors; or
 - 2) Elude or disrupt speed-measuring equipment such as a jamming apparatus.
- (f) Property specifically insured.

- (g) Any property covered under any other coverage extension within this endorsement.

Our limit of insurance under this coverage extension will not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Personal Property in any one **loss**. No deductible applies to this coverage extension.

6. Audio, Visual or Data Electronic Equipment
SECTION III - PHYSICAL DAMAGE COVERAGE,
A. COVERAGE is amended.

The following coverage extension is added.

- a. We** will extend the Comprehensive Coverage and the Collision Coverage that apply to a covered **auto** to **loss** to:

- (1) Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals that is permanently installed in a covered **auto** and was not standard or optional equipment for the manufacturer of such covered **auto** for that make, model and model year.
- (2) Tapes, discs or other similar media designed for use with electronic equipment described in **a.(1)** above.
- (3) Any accessories used with the media or equipment described in **a.(1)** or **a.(2)** above.

- b. Our** limit under **a.(1)** above will not exceed the per loss limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Audio, Visual or Data Electronic Equipment in any one **loss** and supersedes any other limit for such coverage provided elsewhere within this policy. **Our** limit under **a.(2)** and **a.(3)** above combined will not exceed the per loss for media and accessories limit shown in that Declarations in any one **loss**. No deductible applies to this coverage extension.

- c.** This coverage extension does not apply to any property covered under any other coverage extension within this endorsement.

- d. B. EXCLUSIONS** is amended. Exclusion **1.** is deleted only as it applies to the coverage provided by this extension.

7. Business Personal Property
SECTION III - PHYSICAL DAMAGE COVERAGE,
A. COVERAGE is amended.

The following coverage extension is added.

We will extend the Comprehensive Coverage and the Collision Coverage that apply to a covered **auto** to **loss** to business personal property contained in or on such **auto**. This coverage extension is subject to the following:

- a. The business personal property must be owned by **you**, a **family member** or **your employee**.
- b. Comprehensive Coverage is extended only for **loss** because of:
 - (1) Fire;
 - (2) Lightning; or
 - (3) Theft or attempted theft.

Unless the entire **auto** is stolen, there must be visible signs of someone breaking into the **auto** for **b.(3)** above to apply.

- c. This coverage extension does not apply to:
 - (1) Any electronic equipment that reproduces, receives or transmits audio, visual, global positioning or data signals.
 - (2) Tapes, discs, or other similar media designed for use with equipment described in (1) immediately above.
 - (3) Any accessories used with the media or equipment described in (1) or (2) immediately above.
 - (4) Money or jewelry.
 - (5) Any device designed or used to:
 - (a) Detect speed-measuring equipment such as radar or laser detectors; or
 - (b) Elude or disrupt speed-measuring equipment such as a jamming apparatus.
 - (6) Property specifically insured.
 - (7) Any property covered under any other coverage extension within this endorsement.
- d. **Our** limit of insurance for any one **loss** under this coverage extension shall not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Business Personal Property. A deductible applies to this coverage extension. **We** will reduce **our** payment by such deductible amount shown in that Declarations.

8. Hired Autos Physical Damage

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

The following coverage extension is added.

- a. If Hired Autos Liability coverage is provided to **you** by this policy, or any other policy or coverage form provided by **us** or a company affiliated with **us**, then **SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE, 1. a. Comprehensive Coverage** and **b. Collision Coverage** extend to an **auto** (that is not a trailer) **you** lease, hire, rent or borrow.
This does not include any **auto** (that is not a trailer) **you** lease, hire, rent or borrow from any of **your employees**, partners (if **you** are a partnership), members (if **you** are a limited liability company), **executive officers** (if **you** are a corporation), or members of their households.

- b. The most **we** will pay for **loss** to any one covered **auto** is the lesser of:
 - (1) The actual cash value of stolen or damaged property at the time of **loss**;
 - (2) The cost, at local prices, to repair or replace damaged or stolen property with other property of like kind and quality; or
 - (3) The limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Hired Autos Physical Damage.

The Comprehensive Coverage and Collision Coverage deductibles shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Hired Autos Physical Damage apply separately to each **auto** covered by this coverage extension.

9. Transportation Costs

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.

The following coverage extension is added.

We will reimburse **you** for expenses **you** incur for transporting **you** from where a covered **auto** was disabled, to **your** home, place of business or intended destination. **Our** maximum payment shall not exceed the limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Transportation Costs. No deductible applies to this coverage extension.

10. Transportation Expenses Following Theft

SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE 3. Coverage Extensions is

amended. **b. Transportation Expenses Following Theft** is deleted and replaced by:

b. Transportation Expenses Following Theft

If Comprehensive Coverage is shown for an **auto** scheduled in the Declarations, **we** will pay up to the per day limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Transportation Expenses Following Theft but not more than the per loss limit shown in that Declarations in any one **loss** for transportation expenses incurred if such **auto** is stolen. **We** will pay such expenses incurred beginning 48 hours after **you** report the theft to **us** and to the police and ending when such **auto** is returned to use or **we** pay for its **loss**. No deductible applies to this coverage extension. This coverage extension is excess of any other insurance.

11. Motor Cargo

SECTION III - PHYSICAL DAMAGE COVERAGE

A. COVERAGE is amended.

The following coverage extension is added.

- a. **We** will extend the Comprehensive Coverage and the Collision Coverage that apply to a covered **auto** to **loss** to:
 - (1) **Your** property owned, sold or serviced by **you** and in the course of delivery;
 - (2) Property of others for which **you** are legally liable as a truckman under a:
 - (a) Tariff;
 - (b) Bill of lading; or
 - (c) Shipping receipt.
 - b. This coverage extension is subject to the following:
 - (1) This coverage extension does not apply to:
 - (a) Accounts, bills, currency, deeds, evidences of debt, notes, money, securities, jewelry, or other similar valuables.
 - (b) Damage to live animals, except for death or death made immediately necessary because of injury caused by:
 - 1) Fire;
 - 2) Lightning;
 - 3) Flood;
 - 4) Explosion;
 - 5) Collision;
 - 6) Derailment;
 - 7) Overturn; or
 - 8) Stranding, burning or sinking of a ferry or lighter.
 - (c) Painting, statuary or other works of art, or articles that are antique or curious in nature unless such **loss** is an absolute total **loss** caused by a peril **we** insure against.
 - (d) **Loss** by pilferage.
 - (e) Insects, rodents, vermin, birds, animals or inherent vice.
 - (f) Loss from profit, loss of use or loss of market.
 - (g) Leakage, evaporation, shrinkage, breakage, heat or cold, or by being scented, molded, rusted, rotted, soured or changed in flavor or by bending, denting, chipping, marring or scratching unless caused by any of the following:
 - 1) Fire;
 - 2) Lightning;
 - 3) Wind;
 - 4) Flood;
 - 5) Explosion;
 - 6) Collision;
 - 7) Derailment;
 - 8) Overturn; or
 - 9) Stranding, burning or sinking of a ferry or lighter.
 - (h) Riots and civil commotion.
 - (i) Strikers, lock-out workers, or persons taking part in labor disturbances.
 - (j) Any property covered under any other coverage extension within this endorsement.
 - (2) All shipments shall be valued at the actual invoice cost, including:
 - (a) Prepaid freight; and
 - (b) Cost and charges which have accrued and become legally due on such shipments.
 - (3) If there is no invoice, the valuation of the property coverage shall be the cash market value of the article(s) covered on the date and at the place of shipment.
 - (4) With respect to **loss** to any part of covered property made up of several parts, when complete for sale or use, **we** shall only pay for the part lost or damaged. With respect to damage to labels, capsules or wrappers, **we** shall only pay the cost of:
 - (a) New labels, capsules or wrappers; and
 - (b) Reconditioning the goods.
 - (5) With respect to **loss** by breakage of eggs, **we** will pay only when such **loss** exceeds 50% of the value of each shipping package, but **we** will pay no more than \$250 for any one **loss**.
 - (6) **Our** limit of insurance for all **loss** under this coverage extension shall not exceed the per loss limit shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Motor Cargo. No deductible applies to this coverage extension.
 - (7) This coverage extension shall apply as excess insurance over any other specific insurance.
- 12. Air Bag Replacement (Other Than a Private Passenger Auto)**
SECTION III - PHYSICAL DAMAGE COVERAGE, A. COVERAGE is amended.
 The following coverage extension is added.
- a. **We** will extend the Comprehensive Coverage that applies to a covered **auto**, other than a **private passenger auto**, for the replacement of the air bag when it inflates without such **auto** having been involved in a Comprehensive or Collision **loss**.
 - b. The deductible shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Air Bag Replacement applies to this coverage extension. **We** will reduce **our** payment by such deductible amount.

13. Common Loss Deductible - Motor Cargo**SECTION III - PHYSICAL DAMAGE COVERAGE,**

A. COVERAGE is amended. The following provision is added.

- a. If **you** have coverage with **us** or a company affiliated with **us** under any of the following Motor Cargo Coverage Forms:
 - (1) Motor Cargo Special Form;
 - (2) Motor Cargo Named Perils Form;
 - (3) Truckmen's Gross Receipts Motor Cargo Named Perils Form;
 - (4) Truckmen's Legal Liability Motor Cargo Special Form;
 - (5) Annual Transportation Form - Named Perils;
 - (6) Annual Transportation Form - Special Form; or
 - (7) Trip Transit Form
 and there is a covered **loss** under that Motor Cargo Coverage Form and this policy then, at **your** option, the **auto** deductible applicable to the **loss** will be reduced by the amount of the applicable deductible under the Motor Cargo Coverage Form. In the event that more than one **auto** deductible provision applies to the same covered **loss**, with **your** permission, **we** will use the deductible that benefits **you** the most.
- b. However:
 - (1) The covered **losses** must result from a single occurrence and **you** must file a claim on each of the covered **losses**.
 - (2) The amount of **loss** under each policy must exceed the applicable deductible and result in a paid **loss**.
 - (3) In no event will the amount of such reduction exceed the amount of the applicable **auto** deductible.

14. Replacement Cost on New Vehicles**SECTION III - PHYSICAL DAMAGE COVERAGE,**

C. LIMIT OF INSURANCE is amended.

Paragraph 2. is deleted and replaced by the following.

- 2. **We** will, at **our** option, replace an **auto** scheduled in the Declarations with a new one of equal value or pay **you your** original purchase price if:
 - a. Such **auto** is not a motorcycle;
 - b. **You** purchased it new;
 - c. **We** determine the **loss** cannot be repaired; and

- d. The **loss** occurs within the number of days of purchase shown in the COMMERCIAL AUTO PLUS COVERAGE PACKAGE - STANDARD DECLARATIONS for Replacement Cost on New Vehicles.

As it applies to this coverage only, a motorcycle means a vehicle having a saddle or seat for the use of the rider, designed to travel on not more than three wheels in contact with the ground, which is equipped with a motor that exceeds fifty cubic centimeters piston displacement. The wheels on any attachment to the vehicle shall not be considered as wheels in contact with the ground.

15. Rental Auto Gap**SECTION III - PHYSICAL DAMAGE COVERAGE,**

C. LIMIT OF INSURANCE is amended.

The following provision is added.

- a. If the first Named **Insured** is:
 - (1) An individual; or
 - (2) Other than an individual with the Drive Other Car Coverage - Broadened Coverage for Named Individuals endorsement with Comprehensive and Collision Coverages; and
- b. If the **auto** is:
 - (1) A rented **private passenger auto**;
 - (2) Not a total **loss**; and
 - (3) Sold in its damaged condition rather than repaired, as decided by the rental company from which **you** rented the **auto**, **we** will pay the amount for which:
 - (a) **You**, if an individual; or
 - (b) The individual listed on the Drive Other Car Coverage - Broadened Coverage for Named Individuals endorsement, if **you** is other than an individual are liable under the terms of the rental agreement; or
- c. If the **auto** is:
 - (1) A rented **private passenger auto**;
 - (2) Not a total **loss**; and
 - (3) Repaired**we** will pay for damages to the rented **private passenger auto** because of or resulting from the **diminished value**.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA - POLICY CANCELLATION AND NONRENEWAL

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION V - CONDITIONS, B. GENERAL CONDITIONS is amended. The following conditions are added.

1. Cancellation

- a. The first Named Insured shown in the Declarations may cancel this policy at any time by returning it to **us** or by notifying **us** of the date on which cancellation is to take effect. However, during the first 60 days this policy is in effect the first Named Insured may cancel only for one or more of the following reasons:

- (1) The covered **auto** has been totally destroyed;
- (2) Ownership of the covered **auto** has been transferred to another person or corporation; or
- (3) The first Named Insured has purchased another policy to replace this policy.

- b. (1) If a Named Insured is:

- (a) A natural person; or
- (b) One or more related persons residing in the same household

we may cancel this policy by mailing or delivering written notice stating the reason for cancellation to the first Named Insured at the address shown in the Declarations.

- (2) This notice shall be mailed or delivered at least:
 - (a) 10 days prior to the effective date when the reason for cancellation is nonpayment of premium; or
 - (b) 45 days prior to the effective date when cancellation is for any other reason.

We will not cancel for nonpayment of premium during the first 30 days this policy is in effect, unless a check for payment of premium issued to **us** is dishonored for any reason or any other type of premium payment is determined to be rejected or invalid.

- (3) If this policy has been in effect 60 days or more, **we** may cancel this policy only for one or more of the following reasons:

- (a) Nonpayment of premium;
- (b) Material misrepresentation or fraud; or
- (c) The suspension or revocation of **your** driver's license or motor vehicle registration or the driver's license of any other operator who either resides in **your** household or customarily operates an **auto** insured by this policy. Such suspension or revocation must have occurred during the policy period or within 180 days immediately preceding the effective date of the policy period.

- (4) If **we** determine that **you** have been charged a premium that is incorrect for the coverage **you** applied for on the insurance application, **we** shall immediately provide **you** with notice of the amount of additional premium due. If within 10 days of the date of notice, or a longer period if specified in such notice, **you** do not either:

- (a) Pay the additional premium due and maintain the policy in full force under its original terms; or
- (b) Cancel this policy and demand a pro rata refund of any unearned premium then this policy shall be canceled 14 days from the date of notice or a longer period if specified in such notice.

- c. If **b.** above does not apply, **we** may cancel this policy by mailing or delivering written notice stating the reason for cancellation to the first Named Insured at the address shown in the Declarations. This notice shall be mailed or delivered at least:

- (1) 10 days prior to the effective date when the reason for cancellation is nonpayment of premium; or
- (2) 45 days prior to the effective date when cancellation is for other than nonpayment of premium.

We will not cancel for nonpayment of premium during the first 30 days this policy is in effect, unless a check for payment of premium issued to **us** is dishonored for any reason or any other type of premium payment is determined to be rejected or invalid.

- d. If the first Named Insured cancels this policy, **we** shall mail any unearned premium to the first Named Insured within 30 days after the effective date of the cancellation.
- e. If **we** cancel this policy, **we** shall mail any unearned premium to the first Named Insured within 15 days after the effective date of the cancellation.

- f. If this is an audit policy, then, subject to **you** providing **us** or **our** agent the necessary data for audit, **we** will refund any unearned premium within 90 days from the date of cancellation. If **our** audit is not completed within this time limitation, then **we** will accept **your** audit, and any unearned premium refund due will be mailed within 10 working days of receipt of **your** audit.

2. Nonrenewal

If **we** decide not to renew this policy, **we** will mail or deliver written notice stating the reason for nonrenewal to the first Named Insured at the address shown in the Declarations. This notice shall be mailed or delivered at least 45 days prior to the expiration of this policy.

All other policy terms and conditions apply.

58800 (7-23)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA CHANGES

For a covered **auto** licensed or principally garaged in Florida, this endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

With respect to coverage provided by this endorsement, the provisions of the policy apply unless modified by the endorsement.

A. SECTION II - COVERED AUTOS LIABILITY COVERAGE, A. COVERAGE, 2. Coverage Extensions,

a. Supplementary Payments is amended.

Paragraph (6) is deleted and replaced by the following.

- (6) All costs **we** incur in the settlement of any claim or defense of any **suit we** defend. However, such costs shall not include attorneys' fees or attorneys' expenses taxed against the **insured** unless the attorneys' fees or attorneys' expenses were taxed against the **insured** as a result of **our** rejection of an offer of judgment at or below the applicable limit of insurance while providing a defense for that **insured**.

B. SECTION III - PHYSICAL DAMAGE COVERAGE,

A. COVERAGE, Paragraph 1. is amended.

Paragraph a.(5) is deleted and replaced by the following.

- (5) Replacement of any safety or laminated glass. However, in no event, shall a deductible apply to **loss** to glass used in the windshield.

C. SECTION V - CONDITIONS is amended.

1. **A. LOSS CONDITIONS, 3. Appraisal for Physical Damage Loss** is deleted and replaced by the following.

3. Appraisal for Physical Damage Loss

If **you** and **we** disagree on the amount of **loss**, either may demand an appraisal of the **loss**. Upon notice of a demand for appraisal, the opposing party may, prior to appraisal, demand mediation of the dispute in accordance with the Mediation provision contained in this endorsement. The mediation must be completed before a demand for appraisal can be made. In this event, each party will select a competent appraiser. The two appraisers will select a competent and impartial umpire. The appraisers will

state separately the actual cash value and amount of **loss**. If they fail to agree, they will submit their differences to the umpire. A decision agreed to by any two will be binding. Each party will:

- a. Pay its chosen appraiser; and
- b. Bear the other expenses of the appraisal and umpire equally.

If **we** submit to an appraisal, **we** will still retain **our** right to deny the claim.

2. B. GENERAL CONDITIONS is amended.

1. The following provision is added to **2. Other Insurance**.

a. When this policy and any other Coverage Form or policy providing liability coverage applies to an **auto** and:

- (1) One provides coverage to a lessor of **autos** for rent or lease; and
- (2) The other provides coverage to a person not described in Paragraph **B.1.a.(1)**

then the Coverage Form or policy issued to the lessor described in Paragraph **B.1.a.(1)** is excess over any insurance available to a person described in **B.1.a.(2)** if the face of the lease or rental agreement contains, in at least 10 point type, the following language:

The valid and collectible liability insurance and personal injury protection insurance of any authorized rental or leasing driver is primary for the limits of liability and personal injury protection coverage required by FLA. STAT. SECTION 324.021(7) and FLA. STAT. SECTION 627.736.

- b. When this policy and any other Coverage Form or policy providing liability coverage applies to an **auto** being used as a temporary substitute for a service customer's auto that is being held by a motor vehicle dealer, or a motor vehicle dealer's leasing or rental affiliate for repair, service or adjustment; and

- (1) One provides coverage to the service customer; and
- (2) The other provides coverage to a motor vehicle dealer or a motor vehicle dealer's leasing or rental affiliate

then the Coverage Form or policy issued to the service customer described in Paragraph **B.1.b.(1)** is primary over any insurance available to an entity described in Paragraph **B.1.b.(2)** if:

- (a) The vehicle is provided without charge or at a reasonable daily charge; and
- (b) There is no negligence or criminal wrongdoing on the part of the vehicle dealer, or its leasing or rental affiliate; and
- (c) The vehicle dealer or its leasing or rental affiliate executes a written rental or use agreement and obtains from the person receiving the temporary replacement a copy of the person's driver license and insurance information reflecting at least the minimum motor vehicle insurance coverage provided in the state.

2. The following conditions are added.

(1) **Mediation**

- a. In any claim filed by an **insured** with **us** for:
 - (1) **Bodily injury** in an amount of \$10,000 or less, arising out of the ownership, operation, use or maintenance of a covered **auto**;
 - (2) **Property damage** in any amount, arising out of the ownership, operation, maintenance or use of a covered **auto**; or
 - (3) **Loss** to a covered **auto** or its **equipment or custom furnishings**, in any amount

either party may make a written demand for mediation of the claim prior to the institution of litigation.

- b. The costs of mediation must be reasonable. **We** will bear all expenses of conducting the mediation conference unless **you** fail to appear at the conference. If **you** fail to appear at the conference, then **you** shall bear the expenses of a rescheduled mediation conference. If **we** fail to appear at the conference, **we** shall pay **your** actual cash expenses incurred in attending the conference if **our** failure to attend was not due to a good cause acceptable to the department. **We** are deemed to have failed to appear if **our** representative lacks authority to settle the full value of the claim. **We** shall incur an additional fee, paid to the mediator, for a rescheduled conference necessitated by **our** failure to appear at a scheduled conference.
- c. Only one mediation may be requested for each claim unless all parties agree to further mediation.
- d. Disclosures and information divulged in the mediation process shall not be admissible in any subsequent action or proceeding relating to the claim or cause of action giving rise to the claim. A party demanding mediation shall not be entitled to demand or request mediation after a **suit** is filed relating to the same facts already mediated.

(2) **INSUFFICIENT FUNDS FEE**

We may impose an insufficient funds fee of up to \$15 per occurrence, if, because of insufficient funds, **your** payment of premium by debit card, credit card, electronic funds transfer or electronic check is returned, declined or cannot be processed. However, **we** may not charge **you** an insufficient funds fee if the failure in payment resulted from fraud or misuse on **your** account from which the payment was made and such fraud or misuse was not attributed to **you**.

All other policy terms and conditions apply.

58555 (1-16)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

CHANGES - OUR RIGHT TO RECOVER PAYMENTS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION V – CONDITIONS, A. LOSS CONDITIONS, 5. Our Right to Recover Payments is amended. With respect to **SECTION III - PHYSICAL DAMAGE COVERAGE** only, the following condition is added. If the claim paid is less than the agreed **loss** because of any deductible or other limiting terms, the recovery is

prorated between **you** and **us** based on the interest of each in the **loss**. This condition only applies if **we** pay for a **loss** and then payment is made by those responsible for the **loss**.

All other policy terms and conditions apply.

58555 (1-16)

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58550 (1-17)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EXCLUSION OF INJURY TO FAMILY MEMBERS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION II – COVERED AUTOS LIABILITY COVERAGE, B. EXCLUSIONS is amended. The following exclusion is added.

Exclusion of Injury to Family Members
Bodily injury to **you**, if an individual, and to **your family members**.

All other policy terms and conditions apply.

58550 (1-17)

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Page 1 of 1

58524 (1-15)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AMENDMENT OF DEFINITIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION VI - DEFINITIONS is amended.

1. **B.** is deleted and replaced by the following definition.

B. Auto means:

1. A land motor vehicle;
2. A **trailer**; or
3. Any other land vehicle that is subject to a compulsory or financial responsibility law or other motor vehicle insurance law where it is licensed or principally garaged.

However, **auto** does not include **mobile equipment**. As it applies to this endorsement only,

mobile equipment does not include a snowmobile.

2. **U.** is deleted and replaced by the following definition.

U. Trailer means a vehicle which is designed to be connected to and towed by a power unit. **Trailer** does not include non-motorized farm machinery or farm wagons. A **trailer** is not **equipment or custom furnishings**.

All other policy terms and conditions apply.

58524 (1-15)

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58540 (12-19)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PRIMARY AND NONCONTRIBUTORY - BLANKET COVERAGE

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION V - CONDITIONS, B. GENERAL CONDITIONS, 2. Other Insurance is amended. The following provision is added as it applies to this endorsement only. When this insurance is primary and there is other insurance for any person or organization, other than a Named Insured, which covers liability for **your** operations, contribution from such other insurance shall not be sought by **us** when:

- (1) There is a written agreement between **you** and such person or organization that this insurance shall be primary and without the right of contribution; and
- (2) Such written agreement was in force prior to any **bodily injury or property damage**.

All other policy terms and conditions apply.

58540 (12-19)

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Page 1 of 1

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

FLORIDA CHANGES - SECTION IV - INDIVIDUAL NAMED INSURED

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

With respect to coverage provided by this endorsement, the provisions of the policy apply unless modified by the endorsement.

SECTION IV - INDIVIDUAL NAMED INSURED is deleted and replaced by the following:

SECTION IV - INDIVIDUAL NAMED INSURED

If a Named Insured shown in the Declarations is an individual and any **auto** scheduled in the Declarations is a **private passenger auto**, the following extensions of coverage apply:

- A.** The Covered Autos Liability Coverage provided for any scheduled **auto** (that is not a **trailer**) also applies to an **auto** (that is not a **trailer**) **you** don't own except:
1. Any such **auto** owned by a **family member**.
 2. Any such **auto** furnished or available for regular use to **you** or a **family member**. However, **we** will afford **you** Covered Autos Liability Coverage for **your** use of an **auto** (that is not a **trailer**) owned by or furnished for the regular use of a **family member**.
 3. Any such **auto** used in a business of selling, servicing, repairing or parking **autos**.
 4. Any such **auto** used by **you**, a **family member** or the chauffeur or **domestic employee** of either while working in any other business or occupation, unless the **auto** is a **private passenger auto**.
 5. Any such **auto** used by **you** or a **family member** without a reasonable belief of permission to do so.

We only extend this coverage to and while used by:

1. **You**, if an individual; and
2. **Family members**:
 - a. Who do not own an **auto** (that is not a **trailer**); or
 - b. Who own an **auto** (that is not a **trailer**) if scheduled in the Declarations.

We also extend this coverage to anyone legally responsible for the use of the **auto** (that is not a **trailer**) by the persons described in 1. and 2. immediately above.

- B.** The Physical Damage Coverage provided for any scheduled **auto** (that is not a **trailer**) also applies to an **auto** (that is not a **trailer**) **you** don't own except:
1. Any such **auto** owned by a **family member**.
 2. Any such **auto** furnished or available for regular use to **you** or a **family member**.
 3. Any such **auto** used in a business of selling, servicing, repairing or parking **autos**.
 4. Any such **auto** used by **you**, a **family member** or the chauffeur or **domestic employee** of either while working in any other business or occupation, unless the **auto** is a **private passenger auto**.
 5. Any such **auto** used by **you** or a **family member** without a reasonable belief of permission to do so.

We only extend this coverage to and while used by:

1. **You**, if an individual; and
2. **Family members**:
 - a. Who do not own an **auto** (that is not a **trailer**); or
 - b. Who own an **auto** (that is not a **trailer**) scheduled in the Declarations.

These extensions do not apply when there is other insurance covering **your** interest or the interest of the owner. However, they do apply if **you** are legally liable.

All other policy terms and conditions apply.

58558 (3-16)

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

AUTO SHARING PROGRAM EXCLUSION

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

A. SECTION II – COVERED AUTOS LIABILITY COVERAGE, B. EXCLUSIONS is amended.

The following exclusion is added:

Auto Sharing Program

Bodily injury, property damage or covered pollution cost or expense for the ownership, maintenance or use of a covered **auto** while:

1. Enrolled in an electronic or written **auto** sharing program agreement; and
2. Being used in connection with such **auto** sharing program.

If **you** are an individual, this exclusion does not apply to **you** or any **family member** while using such **auto**.

However, this exclusion applies only to the extent that the limits of liability for this coverage exceed the minimum limits of liability required by the financial responsibility law of the state in which **you** reside.

B. SECTION III – PHYSICAL DAMAGE COVERAGE, B. EXCLUSIONS is amended. The following exclusion is added:

Auto Sharing Program

Loss to a covered **auto** which occurs while:

1. Enrolled in an electronic or written **auto** sharing program agreement; and
2. Being used in connection with such **auto** sharing program.

If **you** are an individual, this exclusion does not apply to **you** or any **family member** while using such **auto**.

C. SECTION IV - INDIVIDUAL NAMED INSURED is amended. The following provision is added to Paragraph **B**.

This extension does not apply to **loss** to, or loss of use, of an **auto** in connection with an **auto** sharing program if the provisions of such **auto** sharing program preclude the recovery of such **loss** or loss of use, from **you** or such **family member**, or if otherwise precluded by any state law.

All other policy terms and conditions apply.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LESSOR - ADDITIONAL INSURED AND LOSS PAYEE PROVISION

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SCHEDULE

Effective date:

Expiration date:

Additional Insured (Lessor):

Address of Additional Insured (Lessor):

(If no entry appears above, information required to complete this endorsement will be shown in the Declarations as applicable to this endorsement).

A. Additional Insured Provision

1. For a covered **auto** that is a **leased auto**, the **Who Is An Insured** provision under SECTION II - COVERED AUTOS LIABILITY COVERAGE is changed to include as an **insured** the lessor named in the Schedule. However, the lessor is an **insured** only for **bodily injury** or **property damage** resulting from the acts or omissions by:
 - a. **You**;
 - b. Any of **your employees** or agents; or
 - c. Any person, except the lessor or any **employee** or agent of the lessor, operating a **leased auto** with the permission of any of the above.
2. Coverage applies until the expiration date shown in the Schedule, or when the lessor or his or her agent takes possession of the **leased auto**, whichever occurs first.

B. Loss Payable Clause

1. **We** will pay, as interest may appear, **you** and the lessor named in this endorsement for **loss** to a covered **auto** that is a **leased auto**.
2. The insurance covers the interest of the lessor unless the **loss** results from fraudulent acts or omissions on **your** part.

3. If **we** make any payment to the lessor, **we** will obtain his or her rights against any other party.

C. Cancellation

We shall notify the lessor no less than ten (10) days prior to the effective date of cancellation of this policy.

- D. The lessor is not liable for payment of **your** premiums.

E. Additional Definition

As used in this endorsement:

Leased auto means an **auto** leased or rented to **you**, including any substitute, replacement or extra **auto** needed to meet seasonal or other needs, under a leasing or rental agreement that requires **you** to provide direct primary insurance for the lessor.

All other policy terms and conditions apply.

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THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

LOSS PAYABLE CLAUSE

This endorsement modifies insurance provided under the following:

COMMERCIAL AUTO POLICY

SECTION III – PHYSICAL DAMAGE COVERAGE is amended. The following condition is added.

Loss Payable Clause

1. **Loss** under the policy shall be paid to the:
 - a. Named Insured; and
 - b. The loss payee (lienholder) shown in the Declarations as their interest may appear at the time of the **loss**.
2. **We** shall notify the loss payee ten (10) days prior to the effective date of cancellation of this policy.
3. If the **insured** fails to render proof of **loss** within the time required in the policy, the loss payee shall render proof of **loss**:
 - a. Within 60 days after our request; and
 - b. In a form and manner required in the policy.
4. At **our** option, **we** may pay the loss payee:
 - a. The amount of **loss**; or
 - b. The whole principal due with interest accrued at the time of settlement. If **we** make such payment, the loss payee shall assign and transfer the lien to **us**.
5. After **we** make payment to the loss payee under this agreement, **we** will have the right to recover, to the extent of **our** payment, from anyone held responsible. The transfer of such right to recover shall not impair the loss payee's right to recover the full amount of its claim.

All other policy terms and conditions apply.